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In the Matter of the Claim of

2012 JUL 19 AM 9:30

DAHO GUERRA

Claimant.

-against-

CITY OF NEW YORK and
NEW YORK CITY POLICE DEPARTMENT

Respondents.
-----X

To: CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT, Office of the
Comptroller, 1 Centre Street, New York, New York.

PLEASE TAKE NOTICE that the undersigned claimant hereby makes claim and demands
against you as follows:

1. The name and post office address of the claimant and the claimant's attorneys:

Claimant

Daiho Guerra
2508 Wilson Ave
Bronx, NY 10469

Attorney

Neil Wollerstein
59 Maiden Lane, 43rd Floor
New York, NY 10038
(212) 412-4705

2. The nature of the claim: The nature of the claim is for false arrest, false imprisonment, civil rights violations, assault, battery, abuse of process, negligence, negligent hiring, negligent supervision, use of excessive force and malicious prosecution. All of which resulted in and caused severe and permanent personal, physical and emotional injury to Claimant, and all other damages allowed by statute and case law as a result of actions perpetrated by members of the NEW YORK CITY POLICE DEPARTMENT and the CITY OF NEW YORK, their agents, servants, licensees, employees and other affiliate agencies and departments, as per items 3 and 4 below

3. The time when, the place where and the manner in which the claim arose: Claimant was falsely arrested, assaulted, battered, humiliated and wrongfully imprisoned by multiple members of the NYPD including but not limited to Police Officer Abraham Villavizar (Shield No. 008178) and Police Officer Dennis OSullivan (Shield No. 022219) in the County of Bronx, City and State of New York, on 4/24/12 at approximately 6:00 p.m. in the vicinity of 2508 Wilson Avenue. Claimant remained wrongfully imprisoned for several days. Claimant's case under Docket No. 2012BX024631 was terminated favorably by dismissal on 7/3/12. Claimant was arrested, confined, unduly restrained, maliciously prosecuted and falsely imprisoned.

4. The items of damage or injuries claimed are: Claimant sustained multiple personal, physical, psychological and emotional injuries, including loss of liberty, emotional distress, loss of enjoyment of life, damage to reputation and standing in the community, loss of employment, loss of earnings, loss of future earnings and opportunity and damage to personal property. Claimant sustained anxiety and embarrassment as a result of this incident. Claimant felt grave fear and intimidation for his safety. Claimant was forced to defend against false charges, deprived of his liberty and suffered anxiety as a result of the malicious prosecution commenced by the CITY OF NEW YORK, its agents, servants and employees.

Said claim and demand is hereby presented for adjustment and payment. You are hereby notified that unless they are adjusted and paid within the time provided by law from the date of presentation to you, the claimant intends to commence an action in these claims. Claim is made for One Million Dollars (\$1,000,000).

Dated: July 18, 2012

Daiho Guerra

Attorney for Claimant
Office and Post Office Address, Telephone Number

Neil Wollerstein
59 Maiden Lane
New York, NY 10038
(212) 412-4705

INDIVIDUAL VERIFICATION

State of New York, County of New York ss.:

DAIHO GUERRA

being duly sworn, deposes and says that deponent is the claimant in the within action; that he has read the foregoing Notice of Claim and knows the contents thereof, and that same is true to deponent's own knowledge, except as to the matters therein stated to be alleged upon information and belief and that as to those matters deponent believes it to be true.

X Daiho Guerra
Claimant

SWORN TO BEFORE ME THIS

18 day of July, 2012

NEIL WOLLERSTEIN
Notary Public, State of New York
No. 02W05104776

Qualified in New York County
Commission Expires February 2, 2018
NOTARY PUBLIC

Neil Wollerstein

B

**SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX**

Index No.:

DAIHO GUERRA

Date Purchased:

Plaintiff,

Date Filed:

— against —

SUMMONS

**CITY OF NEW YORK, NEW YORK CITY POLICE
DEPARTMENT, POLICE OFFICER ABRAHAM
VILLAVIZAR, POLICE OFFICER DENNIS
OSULLIVAN, POLICE OFFICER JOHN DOE and
POLICE OFFICER JOHN ROE**

Plaintiff designates Bronx County as the
place of trial. The basis of venue is the
action arose in Bronx County.

Defendant(s).

TO THE ABOVE NAMED DEFENDANTS:

YOU ARE HEREBY SUMMONED to answer the Verified Complaint in this action and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance on the Plaintiff's attorney within 20 days after the service of the summons, exclusive of the day of service or within 30 days after the service is complete if this summons is not personally delivered to you within the State of New York; and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the notice set forth below and in the within Verified Complaint.

Date: New York, New York
March 6, 2013



NEIL WOLLERSTEIN, ESQ.

Attorney for Plaintiff
59 Maiden Lane, 17th Floor
New York, NY 10038
(212) 412-4705
File No.: NW- 448

TO: MICHAEL A. CARDOZO, ESQ.
Corporation Counsel of City Of New York
100 Church Street
New York, NY 10007

NEW YORK CITY POLICE DEPARTMENT
1 Police Plaza
New York, NY 10038

POLICE OFFICER ABRAHAM VILLAVIZAR (Shield No. 008178)
New York City Police Department
47th Precinct
4111 Laconia Avenue
Bronx, NY 10466

POLICE OFFICER DENNIS OSULLIVAN (Shield No. 022219)
New York City Police Department
47th Precinct
4111 Laconia Avenue
Bronx, NY 10466

POLICE OFFICER JOHN DOE
New York City Police Department
1 Police Plaza
New York, NY 10038

POLICE OFFICER JOHN ROE
New York City Police Department
1 Police Plaza
New York, NY 10038

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

DAIHO GUERRA

INDEX NO.

Plaintiff,

– against –

CITY OF NEW YORK, NEW YORK CITY POLICE
DEPARTMENT, POLICE OFFICER ABRAHAM
VILLAVIZAR, POLICE OFFICER DENNIS
OSULLIVAN, POLICE OFFICER JOHN DOE and
POLICE OFFICER JOHN ROE

VERIFIED COMPLAINT

Defendant(s).

Plaintiff, by his attorney, NEIL WOLLERSTEIN, ESQ., complaining of the defendants,
respectfully shows to this Court and alleges the following upon information and belief:

AS AND FOR A FIRST CAUSE OF ACTION ON BEHALF OF
PLAINTIFF DAIHO GUERRA

1. That at all times the Plaintiff **DAIHO GUERRA** was and is a resident of Bronx County, New York.
2. That at all times hereinafter mentioned, the defendant, CITY OF NEW YORK, hereinafter referred to as "CITY", was and still is a municipal corporation organized and existing under and by virtue of the laws of the State of New York.
3. That at all times hereinafter mentioned the defendant, NEW YORK CITY POLICE DEPARTMENT, hereinafter referred to as "NYPD", was and is an agency of the defendant, CITY.
4. That on and prior to 4/24/12 and at all times hereinafter mentioned the defendant, POLICE OFFICER ABRAHAM VILLAVIZAR (Shield No. 008178), hereinafter referred to as "VILLAVIZAR" was and is a police officer employed by the defendant NYPD, and at all times herein was acting in such capacity as the agent, servant and employee of the CITY and NYPD.

5. That on and prior to 4/24/12 and at all times hereinafter mentioned the defendant, POLICE OFFICER DENNIS OSULLIVAN (Shield No. 022219), hereinafter referred to as "OSULLIVAN" was and is a police officer employed by the defendant NYPD, and at all times herein was acting in such capacity as the agent, servant and employee of the CITY and NYPD.

6. That on and prior to 4/24/12 and at all times hereinafter mentioned the defendant, POLICE OFFICER JOHN DOE, hereinafter referred to as "DOE" was and is a police officer employed by the defendant NYPD, and at all times herein was acting in such capacity as the agent, servant and employee of the CITY and NYPD.

7. That on and prior to 4/24/12 and at all times hereinafter mentioned the defendant, POLICE OFFICER JOHN ROE, hereinafter referred to as "ROE" was and is a police officer employed by the defendant NYPD, and at all times herein was acting in such capacity as the agent, servant and employee of the CITY and NYPD.

8. That within ninety (90) days after the causes of actions accrued herein, and more than thirty (30) days prior to the commencement of this action, the Plaintiff **DAIHO GUERRA** caused the notice of claim, in writing, sworn to by and on behalf of the claimant, the Plaintiff **DAIHO GUERRA** herein, containing the statement of the name and place of residence of the claimant by the street and number and his attorney, and describing the time when the particular claim and circumstances under which the damages and injuries were sustained, the cause thereof, and so far as practical, the nature and extent of the injuries to be personally served upon the defendant CITY, their agents, servants and/or employees at the Law Department,

9. This action was so commenced within one (1) year and ninety (90) days after said cause of action accrued herein, and for more than thirty (30) days prior to the commencement of this

action, defendant CITY neglected, refused and failed to make an adjustment of said claim, and said claim remains unadjusted and unpaid, although plaintiff herein has requested and demanded that the same be paid and adjusted.

10. That the defendants requested an oral examination pursuant to General Municipal Law Section 50-H and said request was complied with.

11. That on or about 4/24/12, at approximately 6:00 p.m., the Plaintiff **DAIHO GUERRA** while lawfully in the vicinity of 2505 Wilson Avenue, County of Bronx, City and State of New York, was without just cause, probable cause or provocation, maliciously, intentionally and falsely accused by CITY, NYPD, VILLAVIZAR, OSULLIVAN, DOE and ROE of having committed the crime of Criminal Possession of Marijuana in the Third Degree and other related charges.

12. That on or about 4/24/12, at approximately 6:00 p.m., the Plaintiff **DAIHO GUERRA** was without just cause, probable cause or provocation, and with reckless, negligent and callous disregard for the truth, and without investigation, touched, grabbed, handcuffed, seized and arrested in an excessive manner and with excessive force by CITY, NYPD, VILLAVIZAR, OSULLIVAN, DOE and ROE, their agents, servants and/or employees, and in particular, by VILLAVIZAR, OSULLIVAN, DOE and ROE.

13. That on or about 4/24/12, and upon arresting the Plaintiff **DAIHO GUERRA** and depriving him of his liberty, CITY, NYPD, VILLAVIZAR, OSULLIVAN, DOE and ROE took the Plaintiff **DAIHO GUERRA** to a police station in the County of Bronx and entered him on the records as under arrest.

14. That on or about 4/24/12, the CITY, NYPD, VILLAVIZAR, OSULLIVAN, DOE and ROE further caused Plaintiff **DAIHO GUERRA** to have his fingerprints and photographs to be

taken without his consent and in accordance with police procedures for the arrest of criminals and held him on various criminal charges at various police stations, correctional facilities and at the Courthouse located at 215 East 161st Street, County of Bronx, City and State of New York.

15. That on or about 4/24/12 Plaintiff **DAIHO GUERRA** was aware of his arrest and confinement, he did not consent to his arrest or confinement, and said confinement, seizure, arrest and detention was without legal justification.

16. That at all times hereinafter mentioned the actions of CITY, NYPD, VILLAVIZAR, OSULLIVAN, DOE and ROE as described above were carried out in a reckless, deliberate, willful, wanton, malicious and grossly negligent manner.

17. That by reason of the foregoing, Plaintiff **DAIHO GUERRA** has been damaged in an amount that exceeds the jurisdictional limits of all lower trial courts of this state.

**AS AND FOR A SECOND CAUSE OF ACTION ON BEHALF OF
PLAINTIFF DAIHO GUERRA**

18. Plaintiff **DAIHO GUERRA** repeats, reiterates and realleges each and every allegation contained in paragraphs numbered 1 – 17 with the same force and effect as if fully set forth at length herein.

19. That on or about 4/24/12, a criminal complaint was issued by the CITY, NYPD, VILLAVIZAR, OSULLIVAN, DOE and ROE, their agents, servants and/or employees, without probable cause, reasonable cause or legal justification.

20. That on or about 4/24/12 a criminal action against Plaintiff **DAIHO GUERRA** was commenced by CITY, NYPD, VILLAVIZAR, OSULLIVAN, DOE and ROE, their agents, servants and/or employees, without probable cause, reasonable cause or legal justification.

21. That solely as a result of the aforesaid, the Plaintiff **DAIHO GUERRA**' life was

interfered with.

22. That the criminal action against Plaintiff **DAIHO GUERRA** was continued for an extended period of time by defendants with malice and bad faith.

23. That solely as a result of the false arrest, assault, battery, false imprisonment and malicious prosecution of the Plaintiff **DAIHO GUERRA**, he was deprived of his liberty for an extended period of time and was subjected to scorn, ridicule, embarrassment and was degraded in the esteem of the community both personally and professionally.

24. That on or about 7/3/12, the criminal action against Plaintiff **DAIHO GUERRA** was terminated favorably by dismissal.

25. That the actions of CITY, NYPD, VILLAVIZAR, OSULLIVAN, DOE and ROE as described above were carried out in a reckless, deliberate, willful, wanton, malicious and grossly negligent manner.

26. That by reason of the foregoing, Plaintiff **DAIHO GUERRA** has been damaged in an amount that exceeds the jurisdictional limits of all lower trial courts of this state.

AS AND FOR A THIRD CAUSE OF ACTION ON BEHALF OF
PLAINTIFF DAIHO GUERRA

27. Plaintiff **DAIHO GUERRA** repeats, reiterates and realleges each and every allegation contained in paragraphs numbered 1 – 26 with the same force and effect as if fully set forth at length herein.

28. That on or about 4/24/12, and while in the custody of the defendants in the County of Bronx, City of New York, the Plaintiff **DAIHO GUERRA** was intentionally touched, pushed, assaulted, battered, violated, strip searched, humiliated and handcuffed by the CITY, NYPD, VILLAVIZAR, OSULLIVAN, DOE and ROE, who were acting within the scope of their

employment and authority in such a manner as to knowingly cause injury to plaintiff.

29. That on or about 4/24/12 CITY, NYPD, VILLAVIZAR, OSULLIVAN, DOE and ROE, their agents, servants and employees, acting as agents and on behalf of the CITY, NYPD, VILLAVIZAR, OSULLIVAN, DOE and ROE, within the scope of their employment, did intentionally, willfully and maliciously assault and batter the Plaintiff **DAIHO GUERRA** in that they have the real or apparent ability to cause imminent harmful and/or offensive bodily contact and intentionally did a violent and/or menacing act which threatened such contact to the Plaintiff **DAIHO GUERRA** and their act caused apprehension of such contact in the plaintiff, and in a hostile and/or offensive manner touched and beat the plaintiff and/or offensive bodily contact to the Plaintiff **DAIHO GUERRA** and caused such battery in and about his head, neck, back, body and limbs.

30. That by reason of the aforesaid intentional assault and battery which was committed in an excessive manner and with excessive force and without legal justification or privilege by the defendants, their agents, servants and employees, who were acting within the scope of their employment and authority and without any probable or reasonable cause, Plaintiff **DAIHO GUERRA** suffered great and permanent bodily injury in and about his head, neck, back, body and limbs and was rendered sick, sore, lame and disabled, and suffered conscious pain and suffering, and that he was otherwise damaged.

31. That as a result of the aforesaid assault and battery the Plaintiff **DAIHO GUERRA** was caused to sustain serious, severe, painful and permanent bodily injuries so that he was rendered sick, sore, lame and disabled and so remains and was and will be compelled to seek medical aid and attention and incur expenses for same in an endeavor to cure himself of his said injuries and he was and will be prevented from attending his usual occupation and duties.

32. That at all times hereinafter mentioned the actions of CITY, NYPD, VILLAVIZAR,

OSULLIVAN, DOE and ROE as described above were carried out in a reckless, deliberate, willful, wanton, malicious and grossly negligent manner.

33. That by reason of the foregoing, Plaintiff **DAIHO GUERRA** has been damaged in an amount that exceeds the jurisdictional limits of all lower trial courts of this state.

**AS AND FOR A FOURTH CAUSE OF ACTION ON BEHALF OF
PLAINTIFF DAIHO GUERRA**

34. Plaintiff **DAIHO GUERRA** repeats, reiterates and realleges each and every allegation contained in paragraphs numbered 1 – 33 with the same force and effect as if fully set forth at length herein.

35. That at all times hereinafter mentioned the aforesaid false arrest, assault, battery, false imprisonment and malicious prosecution was caused solely as a result of the negligence of CITY, NYPD, VILLAVIZAR, OSULLIVAN, DOE and ROE, their agents, servants and/or employees.

36. That at all times hereinafter mentioned the actions of CITY, NYPD, VILLAVIZAR, OSULLIVAN, DOE and ROE as described above were carried out in a reckless, deliberate, willful, wanton, malicious and grossly negligent manner.

37. That by reason of the foregoing, Plaintiff **DAIHO GUERRA** has been damaged in an amount that exceeds the jurisdictional limits of all lower trial courts of this state.

**AS AND FOR A FIFTH CAUSE OF ACTION ON BEHALF OF
PLAINTIFF DAIHO GUERRA**

38. Plaintiff **DAIHO GUERRA** repeats, reiterates and realleges each and every allegation contained in paragraphs numbered 1-37 with the same force and effect as if fully set forth at length herein.

39. That the CITY, NYPD, their agents, servants and employees failed to adequately and properly train, supervise, discipline or in any other way control the behavior or their personnel and in

particular defendants VILLAVIZAR, OSULLIVAN, DOE and ROE, and in their hiring practices in the exercise of their functions in that they had a reckless lack of cautious regard for the rights of the public, including Plaintiff **DAIHO GUERRA** and exhibited a lack of that degree of due care which prudent and reasonable individuals would show in executing the duties of the defendants.

40. Defendants CITY and NYPD have grossly failed to train and adequately supervise its police officers and employees in the fundamental law of arrest, search and seizure especially when its police officers and employees are not in possession of a court authorized arrest warrant and where an individual, especially as here, has not committed a crime and has not resisted arrest, that its police officers and employees should only use reasonable force to effectuate an arrest and the arrest should be based on probable cause.

41. Defendant CITY was negligent by failing to implement a policy and instruct police officers who, absent the consent of Plaintiff (or similarly situated individuals) or without the possession of a court authorized arrest warrant or search warrant, said police officers of the CITY and NYPD are not to arrest individuals such as Plaintiff herein where probable cause is lacking and the use of force should only be reasonable when an individual resists arrest and should not be used where an individual is not resisting arrest.

42. Defendant CITY is negligent due to its failure to implement a policy or actively enforce the law if any of the following are lacking: i) probable cause must be present before an individual such as the Plaintiff herein can be arrested; ii) excessive force cannot be used against an individual who does not physically resist arrest; iii) an individual who sustains physical injury at the hands of the police during the arrest process should receive prompt medical attention.

43. The foregoing acts, omissions, and systemic failures are customs and policies of the CITY and NYPD which caused the police officers herein to falsely arrest, falsely imprison, seize,

illegally search, commit an assault and battery on Plaintiff, maliciously prosecute and deny her prompt medical attention under the belief that they would suffer no disciplinary actions for their failure to take proper or prudent steps in this case.

44. Defendant CITY was also negligent in that prior to and at the time of the acts complained of herein, due to the prior history of the Police Officer Defendants named herein, knew or should have known of the bad disposition of said defendants, or at the very least had knowledge of facts that would put a reasonably prudent employer on inquiry concerning their bad disposition and the fact that defendant police officers were not suitable to be hired and employed by the CITY and that due to their lack of training, these officers should have had adequate supervision so that they would not arrest innocent individuals nor use excessive force during the arrest process.

45. That at all times hereinafter mentioned the actions of CITY, NYPD and all defendants herein as described above were carried out in a reckless, deliberate, willful, wanton, malicious and grossly negligent manner.

46. That by reason of the foregoing, Plaintiff **DAIHO GUERRA** has been damaged in an amount that exceeds the jurisdictional limits of all lower trial courts of this state.

AS AND FOR A SIXTH CAUSE OF ACTION ON BEHALF OF
PLAINTIFF DAIHO GUERRA

47. Plaintiff **DAIHO GUERRA** repeats, reiterates and realleges each and every allegation contained in paragraphs numbered 1-46 with the same force and effect as if fully set forth at length herein.

48. In arresting Plaintiff **DAIHO GUERRA**, police officers including but not limited to VILLAVIZAR, OSULLIVAN, DOE and ROE, acting in their capacity as agents, servants and employees of CITY and NYPD, were motivated by an ulterior purpose to do harm, without

justification or economic or social excuse.

49. In arresting Plaintiff **DAIHO GUERRA**, police officers including but not limited to VILLAVIZAR, OSULLIVAN, DOE and ROE, acting in their capacity as agents, servants and employees of CITY and NYPD, sought either a detriment to Plaintiff **DAIHO GUERRA** or a collateral advantage to the CITY and NYPD that is outside the legitimate ends of effectuating an arrest.

50. As a result of the abuse of process by defendants herein, Plaintiff **DAIHO GUERRA** sustained multiple injuries including but not limited to loss of liberty, emotional distress, humiliation, loss of enjoyment of life, and fear and intimidation for his safety.

51. That by reason of the foregoing, Plaintiff **DAIHO GUERRA** has been damaged in an amount that exceeds the jurisdictional limits of all lower trial courts of this state.

**AS AND FOR A SEVENTH CAUSE OF ACTION ON BEHALF OF
PLAINTIFF DAIHO GUERRA**

52. Plaintiff **DAIHO GUERRA** repeats, reiterates and realleges each and every allegation contained in paragraphs numbered 1 - 51 with the same force and effect as if fully set forth at length herein.

53. At all times mentioned herein, defendants CITY, NYPD and NYPD police officers VILLAVIZAR, OSULLIVAN, DOE and ROE were acting under color of law, to wit: the statutes, ordinances and regulations, policies and customs and usage of the State of New York and/or City of New York.

54. Plaintiff **DAIHO GUERRA** is and at all times relevant herein, a citizen of the United States and a resident of Bronx County in the State of New York and brings this cause of action pursuant to 42 United States Code, Section 1983 and 42 United States Code, Section 1988.

55. That on or about 4/24/12, defendants CITY, NYPD, VILLAVIZAR, OSULLIVAN, DOE and ROE without probable cause, reasonable cause or legal justification and while effectuating the seizure of plaintiff **DAIHO GUERRA**, did search, seize, assault and commit a battery and grab the Plaintiff **DAIHO GUERRA** without a court authorized arrest warrant or search warrant and defendants did physically seize Plaintiff **DAIHO GUERRA** during the arrest process in an unlawful and excessive manner. Plaintiff **DAIHO GUERRA** was falsely arrested, unlawfully imprisoned and as a result of defendants' conduct maliciously prosecuted without the defendants possessing probable cause, reasonable cause or legal justification to do so.

56. The above actions of defendants CITY, NYPD, VILLAVIZAR, OSULLIVAN, DOE and ROE resulted in Plaintiff **DAIHO GUERRA** being deprived of the following rights under the United States Constitution: a) Freedom from assault to his person; b) Freedom from battery to his person; c) Freedom from illegal search and seizure; d) Freedom from false arrest; e) Freedom from malicious prosecution; and f) Freedom from the use of excessive force during the arrest process.

57. In addition to the above, defendants CITY and NYPD have as a matter of policy, custom and practice and with deliberate indifference failed to adequately train, supervise, discipline, sanction or otherwise direct its police officers, including the officers involved in this case and any and all unnamed officers involved in the unlawful seizure and arrest of plaintiff, regarding the protection of the constitutional rights of citizens.

58. Defendants CITY, NYPD, VILLAVIZAR, OSULLIVAN, DOE and ROE subjected Plaintiff **DAIHO GUERRA** to such deprivation in a malicious, reckless, deliberate, intentional, grossly negligent and with a callous disregard of Plaintiff **DAIHO GUERRA**' rights and with deliberate indifference to those rights under the Fourth, Fifth, Sixth, Fourteenth and all other related Amendments to the United States Constitution.

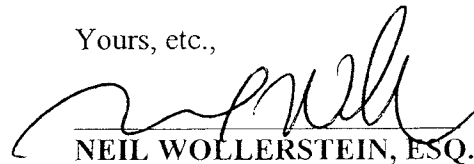
59. The direct and proximate result of the defendants CITY, NYPD, VILLAVIZAR, OSULLIVAN, DOE and ROE acts are that Plaintiff **DAIHO GUERRA** has suffered severe and permanent injuries, loss of liberty and companionship, forced to endure pain and suffering, emotional distress and severe and significant damage to standing and reputation in the community.

60. That by reason of the foregoing, Plaintiff **DAIHO GUERRA** has been damaged in an amount that exceeds the jurisdictional limits of all lower trial courts of this state.

WHEREFORE, the Plaintiff **DAIHO GUERRA** demands judgment against the defendants on the First Cause of Action through the Seventh Cause of Action in a sum that exceeds the jurisdictional limits of all lower trial courts of this state for each cause of action, all together with attorney's fees, punitive damages and the costs and disbursements of this action.

Dated: New York, New York
March 6, 2013

Yours, etc.,



NEIL WOLLERSTEIN, ESQ.

Attorney for Plaintiff

59 Maiden Lane, 17th Floor

New York, NY 10038

(212) 412-4705

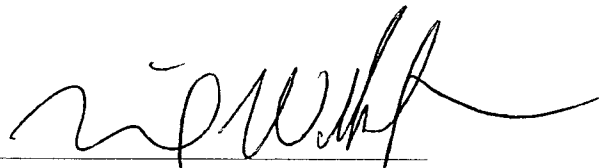
File No.: NW-448

ATTORNEY VERIFICATION

NEIL WOLLERSTEIN, an attorney duly admitted to practice before the courts of the State of New York affirms the following to be true pursuant to CPLR 2106 and under the penalties of perjury:

1. The undersigned, an attorney admitted to practice in the Courts of the State of New York states that he is retained on behalf of plaintiff **DAIHO GUERRA**.
2. That affirmant has read the foregoing **SUMMONS and COMPLAINT** and knows the contents thereof; that the same is true to affirmant's own knowledge except as to the matters therein stated to be alleged on information and belief; and that as to those matters affirmant believes them to be true.
3. Your affirmant further says that the reason this verification is made by affirmant and not the plaintiff is that the plaintiff is not within the County of New York where affirmant maintains his office.

Dated: New York, New York
March 6, 2013


NEIL WOLLERSTEIN

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

DAIHO GUERRA

Plaintiff,

– against –

**CITY OF NEW YORK, NEW YORK CITY POLICE DEPARTMENT,
POLICE OFFICER ABRAHAM VILLAVIZAR, POLICE OFFICER DENNIS
OSULLIVAN, POLICE OFFICER JOHN DOE and POLICE OFFICER JOHN ROE**

Defendant(s).

SUMMONS AND COMPLAINT

NEIL WOLLERSTEIN, ESQ.

Attorney for Plaintiff
59 Maiden Lane, 17th Floor
New York, NY 10038
Tel: (212) 412-4705
Fax: (917) 522-9703
File No.: NW-448

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50-h HEARING

-----X
In the Matter of the Claim of
DAIHO GUERRA,

CLAIMANT,

-against-

THE CITY OF NEW YORK and NEW YORK
CITY POLICE DEPARTMENT,

RESPONDENTS.
-----X

Claim No: 2012PI018744

DATE: March 5, 2013

TIME: 12:50 p.m.

50-h HEARING of the Claimant,
DAIHO GUERRA, pursuant to statute, held at
the office of Jeffrey Samel & Partners,
Esqs., 150 Broadway - 20th Floor, New York,
New York 10038, before Gloria Anselm, a
Notary Public of the State of New York.

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A P P E A R A N C E S:

NEIL WOLLERSTEIN, ESQ.
Attorney for the Claimant
DAIHO GUERRA
59 Maiden Lane - 43rd Floor
New York, New York 10038
BY: ERIK MCKENNA, ESQ.,
of Counsel

JEFFREY SAMEL & PARTNERS, ESQS.
Attorneys for the Respondent
THE CITY OF NEW YORK
150 Broadway - 20th Floor
New York, New York 10038
BY: GEORGE SAWAYA, ESQ.
Claim No: 2012PI018744

* * *

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D A I H O G U E R R A, called as a

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witness, having been first duly sworn by a

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Notary Public of the State of New York, was

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examined and testified as follows:

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EXAMINATION BY

7

MR. SAWAYA:

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Q. Please state your name for the

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record.

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A. Daiho Guerra.

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Q. Where do you reside?

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A. 573 South Broadway, Apartment

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4A, Yonkers, New York 10705.

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Q. Good afternoon, Mr. Guerra.

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A. Good afternoon.

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Q. My name is George Sawaya and I

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will be asking you some questions about

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your claim against the city today. I ask

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that you keep your voice up and make your

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answers in words rather than gestures. The

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reason for that is for the court reporter.

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For instance, if you shake your head like

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this, I know you mean yes, but she needs

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words coming from you to type onto her

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machine, so please use words instead of

GUERRA

gestures. Also, I ask that you wait until I finish my question before you begin your answer. The reason for that is the court reporter. She can't take down the words of two people speaking at the same time. For example, I might be in the process of framing a question and say you know the answer and start to answer. In normal conversation, that's okay, but here you have to wait for me to finish completely before you answer. If I ask a question you don't understand, let me know and I will be happy to rephrase it. If you answer, I will assume you understood the question.

A. Yes.

Q. First, may I have your date of birth?

A. 12/22/87.

Q. What is your Social Security number?

A. XXX-XX-0601.

Q. How long have you lived at your current address?

A. Couple of months now.

1 GUERRA

2 Q. Does anybody live there with
3 you?

4 A. Yes.

5 Q. Who is that?

6 A. My mother and two sisters and
7 niece.

8 Q. What is your mother's name?

9 A. Wanda A-S-O-L-A-N-O.

10 Q. Who else?

11 A. My two sisters.

12 A. Vivian Velez, twenty-two.

13 Q. And who else?

14 A. A-L-E-N-D-R-A G-U-Z-M-A-N.

15 Q. How old is she?

16 A. Nineteen.

17 Q. Where did you live before your
18 current address?

19 A. 2508 Wilson Avenue, Bronx, New
20 York.

21 Q. How long did you live there?

22 A. About five years.

23 Q. Before that?

24 A. I live at 2747 Drew Avenue,
25 Bronx, New York.

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GUERRA

Q. How long did you live there?

A. About ten years.

Q. Are you currently employed?

A. Yes.

Q. What is your job?

A. I take deliveries over the
phone at a restaurant.

Q. What is the name of your
employer?

A. C-A-R-I-D-A-D.

Q. Is that the name of the
restaurant?

A. Yes.

Q. Where is it located?

A. 1660 East Gun Hill Road, Bronx,
New York.

Q. How long did you work for them?

A. Couple of months now.

Q. How much money do you make?

A. Weekly?

Q. Yes.

A. About three-seventy-five.

Q. How many hours a week do you
work?

1 GUERRA

2 A. I don't know.

3 MR. MCKENNA: Is it full-time?

4 THE WITNESS: Yes.

5 Q. What was the date of the
6 beginning of the incident that you're
7 complaining about?

8 A. It was 4/24/12.

9 Q. What time of day did the
10 incident begin?

11 A. Say it again.

12 Q. What time of day was it when
13 the incident began?

14 A. Six o'clock.

15 Q. Morning or evening?

16 A. P.M.

17 Q. Where were you when the
18 incident began?

19 A. I was down the block.

20 Q. What block?

21 A. Wilson.

22 Q. You mean your home at that
23 time?

24 A. Yes.

25 Q. What was the nearest cross

1 GUERRA

2 street?

3 A. Mace.

4 Q. At the time of the incident,
5 were you alone or with anyone else?

6 A. I was alone.

7 Q. At the time of the incident,
8 where were you coming from and where were
9 you going to?

10 A. I was coming from my
11 girlfriend's house.

12 Q. And where were you going to?

13 A. Well, I stop at the gas
14 station, talk to a couple of friends then I
15 made my way up to 2508 Wilson.

16 Q. What is your girlfriend's name?

17 A. Valerie Garcia.

18 Q. Where did she live?

19 A. 3153 Seymour Avenue, Bronx, New
20 York.

21 Q. Is she still your girlfriend?

22 A. Yes.

23 Q. About how long had you been
24 visiting with her before you left?

25 A. With her the whole day.

1 GUERRA

2 Q. How did you get from Valerie's
3 house to the place where the incident
4 began?

5 A. I walk.

6 Q. About how long a distance was
7 that?

8 A. Fifteen minutes.

9 Q. What was the name of the gas
10 station that you stopped at?

11 A. It was a Sunoco.

12 Q. Where?

13 A. Allentown Avenue.

14 Q. Who was it that you stopped to
15 talk to?

16 A. My friend, Biggs.

17 Q. Is that his nickname?

18 A. That is what I call him.

19 Q. Is he employ there?

20 A. Yes.

21 Q. What job does he do there?

22 A. Pump gas.

23 Q. How long did you stop to talk
24 to Biggs?

25 A. A few minutes.

1 GUERRA

2 Q. What did you talk about?

3 A. Regular stuff how the day going
4 stuff like that.

5 Q. Did you give Biggs anything or
6 did Biggs give you anything during this
7 conversation?

8 A. No.

9 Q. Did you talk to anybody else at
10 the gas station?

11 A. No.

12 Q. How far did you get from the
13 gas station to where the incident began how
14 long a distance was that?

15 A. Couple of houses up.

16 Q. Within the same block?

17 A. The same block.

18 Q. Do you know Biggs real name?

19 A. No.

20 Q. As you continue to walk home
21 what happen?

22 A. Well I was walking from a block
23 I seen activity going around my aunts house
24 2508 Wilson Avenue I see cops outside and I
25 get there and the cops approach me and ask

1 GUERRA

2 me for my hand I ask why you want my hand
3 and he reply the same question give me your
4 hand then I refuse and the officer behind
5 him point his gun at me and that is when I
6 give in.

7 Q. Were these officers in uniform,
8 plain clothes or both?

9 A. The officers that ask for my
10 hand in plain clothes and the officer that
11 point the gun at me were in uniform.

12 Q. How many officers in front of
13 2508 Wilson Avenue?

14 A. I don't know.

15 Q. Approximately?

16 A. A lot.

17 Q. What is your aunt's name?

18 A. Desire C-L-E-M-E-N-T-E.

19 Q. Is that a private house?

20 A. Private house.

21 Q. Who was living with you at 2508
22 Wilson Avenue at that time?

23 A. I wasn't living there.

24 Q. You already move?

25 A. Yes.

1 GUERRA

2 Q. What was the reason you moved
3 from that house to Yonkers?

4 A. I decide to move.

5 Q. For what reason?

6 A. To live with my mother.

7 Q. Who did you live with at Wilson
8 Avenue when you live there.

9 A. My aunt and three cousins.

10 Q. What are your cousins name?

11 A. David Rose, Michael Clemente
12 and Timothy.

13 Q. And these are the children of
14 Desire?

15 A. Yes.

16 Q. After the officers pointed a
17 gun at you what happened next?

18 A. I give him my hand they cuff
19 me.

20 Q. In front or behind?

21 A. Behind.

22 Q. Were you searched?

23 A. At the moment no I wasn't
24 search.

25 Q. After you were handcuffed what

1 GUERRA

2 happen next?

3 A. They put me in the patrol car.

4 Q. Do you know whether anybody
5 else was arrested at 2508 Wilson Avenue?

6 A. David and Timothy and Michael.

7 Q. Did you see them before the
8 police car drove away?

9 A. I was in the patrol car by
10 myself.

11 Q. Where did the police car take
12 you?

13 A. At the 47th Precinct.

14 Q. How long in all did you remain
15 in the precinct?

16 A. I don't remember.

17 Q. Were you there overnight?

18 A. Yes, I was there overnight.

19 Q. At the precinct were you
20 fingerprinted?

21 A. Yes.

22 Q. Were you photographed?

23 A. Yes.

24 Q. Were you searched?

25 A. Yes.

1 GUERRA

2 Q. Was that search with your
3 clothing on or off?

4 A. Clothing on.

5 Q. At that time did the police
6 take anything from you?

7 A. No.

8 Q. Were your cousin at the 47th
9 Precinct also?

10 A. Yes.

11 Q. Were you in the same cell as
12 them?

13 A. No.

14 Q. At the precinct did the police
15 ask you any questions about crimes that
16 they were interested in investigating?

17 A. No.

18 Q. From the 47th Precinct where
19 did you go?

20 A. Central Booking.

21 Q. How long in all did you stay at
22 Central Booking?

23 A. I don't remember.

24 Q. Did you get out of Central
25 Booking on April 26th?

1 GUERRA

2 A. They let me go 4/26/12 at 12:30
3 a.m.

4 Q. At Central Booking were you
5 given a lawyer?

6 A. Yes.

7 Q. Do you remember the name of the
8 person?

9 A. No.

10 Q. Was that person from the legal
11 aid society?

12 A. Yes.

13 Q. At Central Booking were you
14 inform of what you were charged with?

15 A. Yes.

16 Q. What were you charged with?

17 A. Marijuana.

18 Q. Possession of marijuana?

19 A. Possession of marijuana.

20 Q. At any time did the police take
21 anything from you?

22 A. No.

23 Q. Did you go before a judge?

24 A. Yes.

25 Q. What happened when you went

GUERRA

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before the judge?

A. She release me.

Q. Without bail?

A. Without bail.

Q. Were you told you had to come
back to court at a later time?

A. Yes.

Q. How many times did you appear
in court?

A. Two.

Q. When was the last time?

A. July 3rd.

Q. Was your lawyer still the same
person?

A. Yes.

Q. What happened in court on July
3rd?

A. They dismiss it.

Q. Dismiss out right or ACD?

A. They dismiss it.

Q. Did anybody explain why the
charges against you were dismissed?

A. I mean I was innocent I was in
the house I didn't know of anything.

GUERRA

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Q. Did you ever learn at any time what your cousins were charged with?

A. Yes.

Q. What were they charged with?

A. Marijuana.

Q. Do you know what happened to the charge against them?

A. No. I was dismiss and I left the courtroom.

Q. At any time did you ever learn what happened to the charges against your cousin were they dismiss did they plea guilty?

A. My cousin plea guilty to marijuana.

Q. All three?

A. No, just Michael.

Q. Are there any charge pending against David or Timothy?

A. I don't know.

Q. Were you aware that there was any marijuana in the house?

A. No.

Q. During the time you were in

1 GUERRA

2 custody did anybody hit you?

3 A. No.

4 Q. During the time you were in
5 custody did anybody call you you any names?

6 A. No.

7 Q. As a result of this incident
8 did you receive any kind of medical,
9 psychiatric or psychological attention?

10 A. No.

11 Q. Did you miss any time from work
12 as a result?

13 A. No, I was under employ at the
14 time.

15 Q. In addition to what you already
16 told me has this incident had any impact on
17 your life?

18 A. Yes.

19 Q. Tell me how?

20 A. Loss of sleep, embarrassment in
21 the neighborhood, family, like you know I
22 am shaking and afraid of the police and
23 things of that nature.

24 Q. Is there anything else you want
25 to tell me you don't have to repeat

GUERRA

1
2 yourself?

3 A. No.

4 Q. When did you begin working at
5 Caridad Restaurant?

6 A. I don't remember.

7 Q. Other than this one did you
8 ever file a claim against the city or any
9 other public agency?

10 A. No.

11 Q. To the best of your knowledge
12 does the city have any liens against you
13 that is do you owe them any money?

14 A. No.

15 Q. Have you ever been convicted of
16 a crime?

17 A. No.

18 Q. Other than this incident have
19 you ever been arrested?

20 A. No.

21 Q. Do you know whether the police
22 had a warrant to your aunt's house?

23 A. Yes, they did.

24 Q. Did you ever see the warrant?

25 A. No.

1 GUERRA

2 Q. Do you know whether the warrant
3 mentioned you?

4 A. I don't know.

5 Q. Have you ever gone by any name
6 besides Daiho Guerra?

7 A. No.

8 Q. In addition to bringing this
9 claim, did you make a complaint to the
10 Civilian Complaint Review Board or the
11 Internal Affairs of the police department?

12 A. No.

13 MR. SAWAYA: Thank you. I have
14 no more questions. Can I get 160.50
15 authorization?

16 MR. MCKENNA: Follow up in
17 writing.

18

19 (Continued on next page to include jurat.)

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GUERRA

MR. SAWAYA: Thank you very
much. I have no further questions.

(Whereupon, at 1:10 p.m., the
Examination of this Witness was concluded.)

DAIHO GUERRA

Subscribed and sworn to before me
this _____ day of _____ 2013.

NOTARY PUBLIC

C E R T I F I C A T E

STATE OF NEW YORK)
 : SS.:
COUNTY OF KINGS)

I, GLORIA ANSELM, a Notary Public for
and within the State of New York, do hereby
certify:

That the witness whose examination is
hereinbefore set forth was duly sworn and
that such examination is a true record of
the testimony given by that witness.

I further certify that I am not
related to any of the parties to this
action by blood or by marriage and that I
am in no way interested in the outcome of
this matter.

IN WITNESS WHEREOF, I have hereunto
set my hand this 18th day of March 2013.

Gloria Anselm

GLORIA ANSELM

D

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

----- X
DAIHO GUERRA,

AFFIRMATION

Plaintiff,

Index #: 20802-2013

- against -

CITY OF NEW YORK, POLICE OFFICER ABRAHAM
VILLAVIZAR, POLICE OFFICER DENNIS
OSULLIVAN, POLICE OFFICER JOHN DOE AND
POLICE OFFICER JOHN ROE,

Defendants.
----- X

DAVID SLOTT, Assistant District Attorney, in the Narcotics Bureau, of the
Office of the District Attorney of Bronx County, affirms and says:

1. I am employed by the Office of the District Attorney of Bronx County as an Assistant District Attorney. In my capacity as an Assistant District Attorney I have been assigned to the criminal prosecution of DAVID ROSE under Case No. 2012BX024635 for an arrest on April 24, 2012.
2. It has come to my attention that a former co-defendant of DAVID ROSE in the above referenced criminal matter currently pending, by the name of DAIHO GUERRA, has filed a civil lawsuit against The City of New York, the New York City Police Department, Police Officer Abraham Villavizar, and Police Officer Dennis O'Sullivan.
3. I have requested that the City move for a stay in the civil action and submit this affidavit in support of the City's motion because the police officers cited in the civil lawsuit are also involved in the ongoing criminal matter and are expected to be principal witnesses at the criminal trial. If the officers were

required to testify at the civil proceedings, it could potentially impact the criminal court proceedings against the remaining defendant- DAVID ROSE.

4. The rubrics of criminal discovery do not permit for pre-trial depositions or interrogatories of potential witnesses. While the criminal defense bar will often use pre-trial hearings to enhance discovery, the fact that such hearings in this particular criminal against DAVID ROSE have been precluded further emphasizes the importance of a stay in the civil depositions. If the current civil litigation were permitted to proceed, then DAIHO GUERRA, the plaintiff in the civil suit, could depose and/or interpose interrogatories to some or all of the witnesses in the ongoing criminal matter. Although defendant ROSE is not involved in the civil litigation, he could easily obtain the deposition transcripts or the interrogatories from his former co-defendant GUERRA, thereby practically circumventing the preclusion of pre-trial hearings.

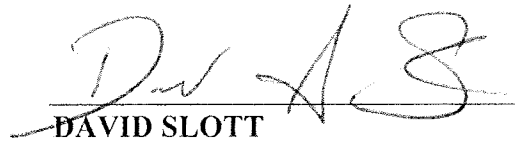
5. The allowance of depositions or interrogatories would undoubtedly prejudice the criminal prosecution. At depositions, few areas of inquiry are prohibited. Criminal defendant ROSE potentially could have access, through his former co-defendant GUERRA, to a wider variety of information through depositions than would be permitted in the criminal context.

6. Moreover, depositions and interrogatories in the civil lawsuit would create discovery in the criminal prosecution that does not already exist and provide fodder for cross-examination in the criminal case. Even truthful witnesses may have minor inconsistencies or omissions when repeatedly retelling the events of a

particular day. A criminal defendant should not be permitted to take advantage of liberal civil discovery policies to manufacture areas of cross examination.

7. This case is next on in Part MSG for Trial on May 13, 2014.

Dated: Bronx, New York
April 9, 2014

A handwritten signature in dark ink, appearing to read "David Slott", written over a horizontal line.

DAVID SLOTT
Assistant District Attorney
Bronx County, New York

E

Web Crims

Case Details - Summary

CASE INFORMATION

Court: **Bronx Criminal Court**
Case #: **2012BX024635**
Defendant: **Rose, David**

Defendant

Name: **Rose, David**
Birth Year: **1989**
NYSID: **2538130M**

Incident and Arrest

Incident

Date: **April 24, 2012**
CJTN: **65421516N**

Arrest

Date & Time: **April 24, 2012 18:25**
Arrest #: **B12633177**

Officer

Agency: **NYPD**
Command: **47**

Attorney Information

Defense Attorney

Name: **Unk,**
Type: **18B (Assigned)**
Court Date: **April 25, 2012**
Court Part: **APAR1/3**
Address: **999, Bx, NY 0**
Phone: **000 - 000 - 0000**

Assistant District Attorney

Name:
Assigned: **April 25, 2012**

Next Appearance

Date: **May 13, 2014**
Court: **Bronx Criminal Court**
Part: **MSG**

Docket Sentence

No Sentence Information on File

WebCrims

Case Details - Appearances

CASE INFORMATION

Court: **Bronx Criminal Court**
 Case #: **2012BX024635**
 Defendant: **Rose, David**

Date/ Part	Judge	Calendar Section	Arraignment/ Hearing Type	Court Reporter	Outcome/ Release Status
05/13/2014 MSG		PENDING	No Type		
04/07/2014 MSG	Mcguire, W	PENDING	No Type	Russo, M	Case Continued (adjourned) Bail Continued
03/11/2014 MSG	Mcguire, W	PENDING	No Type	Johnson, J	Case Continued (adjourned) Bail Continued
01/30/2014 MSG	Adler, H	PENDING	No Type	Unk,	Case Continued (adjourned) Bail Continued
11/19/2013 MSG	Oliver, E	PENDING	No Type	Kaplan, M	Case Continued (adjourned) Bail Continued
10/25/2013 AP3	Wilson, J	PENDING	No Type	Johnson,	Case Continued (adjourned) Bail Continued
08/30/2013 AP3	Wilson, J	PENDING	No Type	Viti,	Case Continued (adjourned) Bail Continued
06/14/2013 AP3	Hornstein, S	PENDING	No Type	Rodriguez,	Case Continued (adjourned) Bail Continued
05/06/2013 AP3	Hornstein, S	PENDING	No Type	Cleary,	Case Continued (adjourned) Bail Continued
02/26/2013 AP3	Rodriguez, J	PENDING	No Type	Burrofato,	Case Continued (adjourned) Bond \$2,500 Cash \$1,000 (Bond)
12/06/2012 AP3	Oliver, E	PENDING	No Type	Unk,	Case Continued (adjourned) Bond \$2,500 Cash \$1,000 (Not Posted)
04/25/2012 APAR1/3	Morris, G	PENDING	Pre-Arraignment Deposition Given	Cleary,	Transferred To Another Court Bond \$2,500 Cash \$1,000 (Not Posted)

Case Details - Charges

CASE INFORMATION

Court: **Bronx Criminal Court**
Case #: **2012BX024635**
Defendant: **Rose, David**

Charge	Detail	Disposition/Sentence
AC 10-131 I3	Unclassified Misdemeanor, 1 count, Not an arrest charge, Arraignment charge Description:	Transferred
PL 265.01 01 **TOP CHARGE**	A Misdemeanor, 1 count, Not an arrest charge, Arraignment charge Description: <i>Crim Poss Weap-4th:firearm/wep</i>	Transferred

F

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

-----x
DAIHO GUERRA,

Plaintiff(s),

-against-

CITY OF NEW YORK, NEW YORK CITY POLICE
DEPARTMENT, POLICE OFFICER ABRAHAM
VILLAVIZAR, POLICE OFFICER DENNIS
OSULLIVAN, POLICE OFFICER JOHN DOE AND
POLICE OFFICER JOHN ROE,

Defendant(s).
-----x

ANSWER

Index #: 020802/2013E

Law Dept. #: 2013-008838

Your File #: NW-448

Defendants THE CITY OF NEW YORK, THE CITY OF NEW YORK S/H/A
NEW YORK CITY POLICE DEPARTMENT, by MICHAEL A. CARDOZO, Corporation
Counsel, answering the complaint, allege upon information and belief:

1. Deny each allegation set forth in paragraph(s) 11-13, 15-17, 19-23, 25, 26,
28-33, 35-37, 39-46, 48-51, 55-60, inclusive.
2. Deny knowledge or information sufficient to form a belief with respect to
the truth of the allegations set forth in paragraph(s) 1, 4-7, 14, 24, 54, inclusive.
3. Deny the allegations set forth in paragraph(s) 8-10, inclusive, except that a
notice of a claim was presented, that more than thirty days have elapsed without adjustment
thereof.
4. Deny each allegation set forth in paragraph(s) 3, inclusive, except that the
City of New York is a municipal corporation and maintains a Police Department pursuant to law.
5. Deny each allegation set forth in paragraph(s) 18, 27, 34, 38, 47, 52,
inclusive, except as otherwise pleaded herein.

6. Deny each allegation set forth in paragraph(s) designated 53, inclusive, as the same are conclusory and evidentiary and present questions of law and fact which should be reserved for decision at the time of trial.

AFFIRMATIVE DEFENSE(S)

7. Plaintiff(s)' culpable conduct caused or contributed, in whole or in part, to his/her/their injuries and or damages.

8. At all times mentioned in the complaint, plaintiff(s) knew or should have known in the exercise of due/reasonable care of the risks and dangers incident to engaging in the activity alleged. Plaintiff(s) voluntarily performed and engaged in the alleged activity and assumed the risk of the injuries and/or damages claimed. Plaintiff(s) failed to use all required, proper, appropriate and reasonable safety devices and/or equipment and failed to take all proper, appropriate and reasonable steps to assure his/her/their safety. Plaintiff(s)' primary assumption of risk solely caused his/her/their injuries and/or damage and defendant(s) owed no duty to the plaintiff(s) with respect to the risk assumed. Plaintiff(s)' express assumption of risk solely caused his/her/their injuries and/or damage and defendant(s) owed no duty to the plaintiff(s) with respect to the risk assumed. Plaintiff(s)' implied assumption of risk caused or contributed, in whole or in part to his/her/their injuries. In any action for injuries arising from the use of a vehicle in, or upon which plaintiff(s) were riding; it will be claimed that the injuries and/or damages sustained were caused by the failure of the plaintiff(s) to use available seat-belts and/or other safety devices.

9. Defendants are immune from suit for their exercise of discretion in the performance of a governmental function and/or their exercise of professional judgment.

10. The amounts recoverable by plaintiff(s) are subject to limitation pursuant to Section 1601 of the Civil Practice Law and Rules, by reason of the culpable conduct of other

person(s) who are, or with reasonable diligence could have been made party defendant(s) to this action, or pursuant to Section 15-108 of the General Obligations Law, by reason of a prior settlement between plaintiff(s) and said person(s), or pursuant to Section 4545 of the Civil Practice Law and Rules are subject to reduction by collateral sources received by plaintiff(s), or by reason of the fact that punitive damages are not recoverable against municipal defendant(s).

11. If plaintiff demonstrates that the acts complained of were undertaken in the scope of the actor(s) employment, then such acts as may have been committed by law enforcement officers in the employ of the City of New York were justified as being reasonably necessary, and were committed in good faith without malice and with probable cause, and in the exercise of professional judgment or the performance of discretionary functions for which defendant(s) are qualifiedly privileged under the laws of this State and of the United States. Individual defendant(s) represented by the Office of the Corporation Counsel (if any) did not violate any clearly established constitutional or statutory right of which a reasonable person would have known and therefore are/is protected by qualified immunity.

12. Plaintiff(s) did not submit to an examination pursuant to Section 50-h, General Municipal Law, before commencement of this action.

WHEREFORE, defendant(s) demand judgment dismissing the complaint and all cross-claims against them, or, in the event that they are adjudged liable, granting judgment over, or apportioning such liability in accordance with their equitable shares of responsibility, and awarding the costs of this action, together with such other and further relief as to the court may seem just.

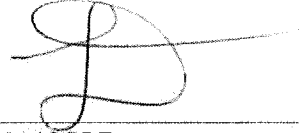
MICHAEL A. CARDOZO
Corporation Counsel
100 Church Street
New York, New York 10007

VERIFICATION

Re: DAIHO GUERRA; LD #: 2013-008838

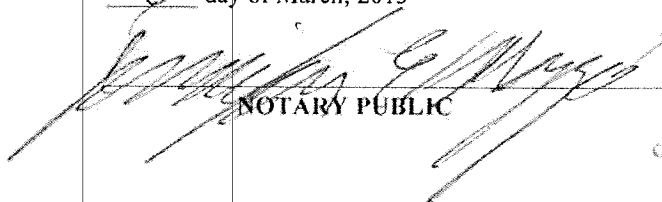
LENA ALLEN-MOORE being duly sworn deposes and says that: deponent is an employee of the Office of the Corporation Counsel; that deponent has read the foregoing answer, cross-claim(s) and counterclaim(s), if any, and knows the contents thereof; that the same are true to deponent's own knowledge, except as to the matters alleged upon information and belief, which deponent believes to be true based upon the files, books and records maintained by The City of New York, New York City Health and Hospitals Corporation or the New York City Board/Department of Education, and the officers or agents thereof.

Dated: New York, New York
March 26, 2013

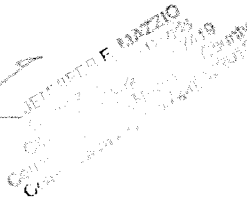


LENA ALLEN-MOORE

Sworn to before me this
26 day of March, 2013



NOTARY PUBLIC



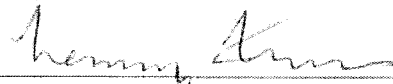
STIPULATION/CERTIFICATION

IT IS HEREBY STIPULATED AND AGREED, that at any time prior to the filing of a note of issue in this action, plaintiff(s) may amend the complaint to name additional defendants herein, provided that such additional defendants shall not include the City of New York, the Board/Department of Education, Health & Hospitals Corporation, City University of New York, or any of their respective departments, subdivisions or employees, nor any other person entitled to defense or indemnification by the City of New York.

The signature below shall constitute the signature required pursuant to NYCRR 130-1.1-a and pertains to all of the enclosed documents: answer, cross-claim(s) and counter-claims(s), if any, together with the accompanying combined demands for particulars and discovery.

Dated: New York, New York
March 26, 2013

By:



CHARLOTTE T. BORROUGHS / LENNY FUCHS
Special Assistant Corporation Counsel

Attorney(s) for Plaintiff(s)

Please do not send correspondence to the above named individual unless otherwise directed. See Answer back for additional contact information.

-against-

Defendant(s).

X

JOYCELYN JACK
Notary Public, State of New York
No. 01JA6231515
Qualified in Queens County
Commission Expires November 29, 2014

G

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

-----X

DAIHO GUERRA,

Plaintiff(s),

-against-

CITY OF NEW YORK, NEW YORK CITY POLICE
DEPARTMENT, POLICE OFFICER ABRAHAM
VILLAVIZAR, POLICE OFFICER DENNIS
OSULLIVAN, POLICE OFFICER JOHN DOE AND
POLICE OFFICER JOHN ROE,

Defendant(s).

-----X

AMENDED ANSWER

Index #: 020802/2013E

Law Dept. #: 2013-008838

Your File #: NW-448

Defendants THE CITY OF NEW YORK, THE CITY OF NEW YORK S/H/A
NEW YORK CITY POLICE DEPARTMENT and POLICE OFFICER ABRAHAM
VILLAVIZAR, by MICHAEL A. CARDOZO, Corporation Counsel, answering the complaint,
allege upon information and belief:

1. Deny each allegation set forth in paragraph(s) 11-13, 15-17, 19-23, 25, 26,
28-33, 35-37, 39-46, 48-51, 55-60, inclusive..
2. Deny knowledge or information sufficient to form a belief with respect to
the truth of the allegations set forth in paragraph(s) 1, 4-7, 14, 24, 54, inclusive.
3. Deny the allegations set forth in paragraph(s) 8-10, inclusive, except that a
notice of a claim was presented, that more than thirty days have elapsed without adjustment
thereof.
4. Deny each allegation set forth in paragraph(s) 3, inclusive, except that the
City of New York is a municipal corporation and maintains a Police Department pursuant to law.

5. Deny each allegation set forth in paragraph(s) 18, 27, 34, 38, 47, 52, inclusive, except as otherwise pleaded herein.

6. Deny each allegation set forth in paragraph(s) designated 53, inclusive, as the same are conclusory and evidentiary and present questions of law and fact which should be reserved for decision at the time of trial.

AFFIRMATIVE DEFENSE(S)

7. Plaintiff(s)' culpable conduct caused or contributed, in whole or in part, to his/her/their injuries and or damages.

8. At all times mentioned in the complaint, plaintiff(s) knew or should have known in the exercise of due/reasonable care of the risks and dangers incident to engaging in the activity alleged. Plaintiff(s) voluntarily performed and engaged in the alleged activity and assumed the risk of the injuries and/or damages claimed. Plaintiff(s) failed to use all required, proper, appropriate and reasonable safety devices and/or equipment and failed to take all proper, appropriate and reasonable steps to assure his/her/their safety. Plaintiff(s)' primary assumption of risk solely caused his/her/their injuries and/or damage and defendant(s) owed no duty to the plaintiff(s) with respect to the risk assumed. Plaintiff(s)' express assumption of risk solely caused his/her/their injuries and/or damage and defendant(s) owed no duty to the plaintiff(s) with respect to the risk assumed. Plaintiff(s)' implied assumption of risk caused or contributed, in whole or in part to his/her/their injuries. In any action for injuries arising from the use of a vehicle in, or upon which plaintiff(s) were riding; it will be claimed that the injuries and/or damages sustained were caused by the failure of the plaintiff(s) to use available seat-belts and/or other safety devices.

9. Defendants are immune from suit for their exercise of discretion in the performance of a governmental function and/or their exercise of professional judgment.

10. The amounts recoverable by plaintiff(s) are subject to limitation pursuant to Section 1601 of the Civil Practice Law and Rules, by reason of the culpable conduct of other person(s) who are, or with reasonable diligence could have been made party defendant(s) to this action, or pursuant to Section 15-108 of the General Obligations Law, by reason of a prior settlement between plaintiff(s) and said person(s), or pursuant to Section 4545 of the Civil Practice Law and Rules are subject to reduction by collateral sources received by plaintiff(s), or by reason of the fact that punitive damages are not recoverable against municipal defendant(s).

11. The complaint fails to state a cause of action for which relief can be granted, and such acts as were committed by law enforcement officers in the employ of the City of New York in the scope of their employment were justified as being reasonably necessary, and were committed in good faith without malice and with probable cause, and in the exercise of professional judgment or the performance of discretionary functions for which defendant(s) are qualifiedly privileged under the laws of this State and of the United States.

12. Plaintiff(s) did not submit to an examination pursuant to Section 50-h, General Municipal Law, before commencement of this action.

WHEREFORE, defendant(s) demand judgment dismissing the complaint and all cross-claims against them, or, in the event that they are adjudged liable, granting judgment over, or apportioning such liability in accordance with their equitable shares of responsibility, and awarding the costs of this action, together with such other and further relief as to the court may seem just.

MICHAEL A. CARDOZO
Corporation Counsel
100 Church Street
New York, New York 10007

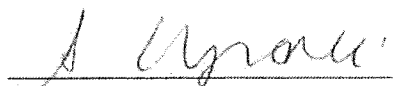
VERIFICATION

SHIRA MIZRAHI being duly sworn deposes and says that: deponent is an employee of the Office of the Corporation Counsel; that deponent has read the foregoing answer, cross-claim(s) and counterclaim(s), if any, and knows the contents thereof; that the same are true to deponent's own knowledge, except as to the matters alleged upon information and belief, which deponent believes to be true based upon the files, books and records maintained by The City of New York, New York City Health and Hospitals Corporation or the New York City Board/Department of Education, and the officers or agents thereof; and further swears that on this date he/she caused said answer, cross-claim(s) and counterclaim(s), if any, together with the accompanying combined demands for particulars and discovery, to be served upon:

NEIL WOLLERSTEIN, ESQ.
the attorney(s) for Plaintiff(s)
at 59 MAIDEN LANE, 17TH FLOOR
NEW YORK, NY 10038

by depositing a copy of the same, into a box situated at 100 Church Street in the Borough of Manhattan, City of New York, for subsequent daily delivery to the United States Post Office.

Dated: Bronx, New York
April 26, 2013


SHIRA MIZRAHI

Sworn to before me this
26 day of April, 2013


NOTARY PUBLIC

CALLISTE KENISHA CARI
Notary Public, State of New York
Registration #02CA6268541
Qualified In Queens County
Commission Expires 09/10/2016

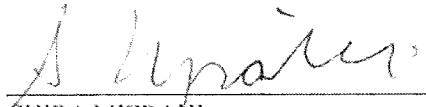
STIPULATION/CERTIFICATION

IT IS HEREBY STIPULATED AND AGREED, that at any time prior to the filing of a note of issue in this action, plaintiff(s) may amend the complaint to name additional defendants herein, provided that such additional defendants shall not include the City of New York, the Board/Department of Education, Health & Hospitals Corporation, City University of New York, or any of their respective departments, subdivisions or employees, nor any other person entitled to defense or indemnification by the City of New York.

The signature below shall constitute the signature required pursuant to NYCRR 130-1.1-a and pertains to all of the enclosed documents: answer, cross-claim(s) and counter-claims(s), if any, together with the accompanying combined demands for particulars an discovery.

Dated: Bronx, New York
April 26, 2013

By:


SHIRA MIZRAHI
Assistant Corporation Counsel

Attorney(s) for Plaintiff(s)

Index #: 020802/2013E

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

DAIHO GUERRA,

Plaintiff(s),

- against -

CITY OF NEW YORK, NEW YORK CITY POLICE DEPARTMENT,
POLICE OFFICER ABRAHAM VILLAVIZAR, POLICE OFFICER
DENNIS OSULLIVAN, POLICE OFFICER JOHN DOE AND POLICE
OFFICER JOHN ROE,

Defendant(s).

AMENDED ANSWER

MICHAEL A. CARDOZO

Corporation Counsel

Attorney for Defendants

THE CITY OF NEW YORK, THE CITY OF NEW YORK S/H/A NEW
YORK CITY POLICE DEPARTMENT , POLICE OFFICER
ABRAHAM VILLAVIZAR , and POLICE OFFICER DENNIS
OSULLIVAN

100 Church Street

New York, New York 10007

Telephone Numbers:

Pleadings Unit (appearances & amendments)

(212) 788-0499

Early Intervention Unit (settlements – all Boroughs)

(212) 788-1215

All Other Matters (by county of venue)

(718) 590-3487 (EBT's-3971) (Bronx)

(718) 222-2000 (EBT's-2069) (Kings)

(212) 788-0646 (EBT's-0628) (New York)

(718) 206-4731 (EBT's (718) 206-4703) (Queens)

(718) 447-5983 (EBT's-5985) (Richmond)

Please refer to the following Law Dept. #: **2013-008838**

and indicate the County in which the action is pending in all papers,
correspondence and other communications with respect thereto.

H

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

DAIHO GUERRA

INDEX NO.: 20802-2013

Plaintiff,

– against –

CITY OF NEW YORK, NEW YORK CITY POLICE
DEPARTMENT, POLICE OFFICER ABRAHAM
VILLAVIZAR, POLICE OFFICER DENNIS
OSULLIVAN, POLICE OFFICER JOHN DOE and
POLICE OFFICER JOHN ROE

AMENDED VERIFIED
COMPLAINT

Defendant(s).

Plaintiff, by his attorney, **NEIL WOLLERSTEIN, ESQ.**, complaining of the defendants, respectfully shows to this Court and alleges the following upon information and belief:

1. That at all times the Plaintiff **DAIHO GUERRA** was and is a resident of Bronx County, State of New York.
2. That at all times hereinafter mentioned, the defendant, CITY OF NEW YORK, hereinafter referred to as "CITY", was and still is a municipal corporation organized and existing under and by virtue of the laws of the State of New York.
3. That at all times hereinafter mentioned the defendant, NEW YORK CITY POLICE DEPARTMENT, hereinafter referred to as "NYPD", was and is an agency of the defendant, CITY.
4. That on and prior to 4/24/12 and at all times hereinafter mentioned the defendant, POLICE OFFICER ABRAHAM VILLAVIZAR (Shield No. 8178), hereinafter referred to as "VILLAVIZAR" was and is a police officer employed by the defendant NYPD, and at all times herein was acting in such capacity as the agent, servant and employee of the CITY and NYPD.
5. That on and prior to 4/24/12 and at all times hereinafter mentioned the defendant, POLICE OFFICER DENNIS OSULLIVAN (Shield No. 22219), hereinafter referred to as

"OSULLIVAN" was and is a police officer employed by the defendant NYPD, and at all times herein was acting in such capacity as the agent, servant and employee of the CITY and NYPD.

6. That on and prior to 4/24/12 and at all times hereinafter mentioned the defendant, POLICE OFFICER JOHN DOE, hereinafter referred to as "DOE" was and is a police officer employed by the defendant NYPD, and at all times herein was acting in such capacity as the agent, servant and employee of the CITY and NYPD.

7. That on and prior to 4/24/12 and at all times hereinafter mentioned the defendant, POLICE OFFICER JOHN ROE, hereinafter referred to as "ROE" was and is a police officer employed by the defendant NYPD, and at all times herein was acting in such capacity as the agent, servant and employee of the CITY and NYPD.

8. Upon information and belief, at all times hereinafter mentioned, and on 4/24/12, at approximately 6:00 p.m., several police officers including but not limited to VILLAVIZAR, OSULLIVAN, DOE and ROE were on duty and in the vicinity of 2508 Wilson Avenue, County of Bronx, City and State of New York.

9. Upon information and belief, at all times hereinafter mentioned, and on 4/24/12, at approximately 6:00 p.m., the above mentioned Police Officers were acting within the scope of their employment and under the direction of the CITY and NYPD as its agents, servants and/or employees.

10. Upon information and belief, defendants VILLAVIZAR, OSULLIVAN, DOE and ROE were all assigned to the 47th Precinct.

11. That on and prior to 4/24/12 VILLAVIZAR, OSULLIVAN, DOE and ROE were each individually hired, screened, tested, interviewed, trained, retrained, investigated, monitored and supervised by the CITY and NYPD.

12. That on and prior to 4/24/12, at approximately 6:00 p.m., and all relevant times herein after, VILLAVIZAR, OSULLIVAN, DOE and ROE individually and/or collectively were acting pursuant to and under the rules and regulations of the New York City Patrol Guidelines.

13. That on 4/24/12, at approximately, 6:00 p.m., Plaintiff **DAIHO GUERRA** was lawfully in the vicinity 2508 Wilson Avenue, County of Bronx, State of New York and doing nothing illegal, improper or acting suspicious in anyway.

14. That on 4/24/12, at approximately, 6:00 p.m., in the vicinity of 2508 Wilson Avenue, County of Bronx, State of New York, VILLAVIZAR, OSULLIVAN, DOE and ROE, absent an arrest warrant, probable cause, reasonable cause or any legal justification, approached Plaintiff **DAIHO GUERRA** for no reason and summarily stopped, searched, grabbed, assaulted, battered, and detained him in an aggressive and excessive manner.

15. Upon information and belief VILLAVIZAR, OSULLIVAN, DOE and ROE knew or had reason to know that their actions lacked any legal justification in approaching, searching, seizing and arresting Plaintiff **DAIHO GUERRA**.

16. Upon information and belief, Plaintiff **DAIHO GUERRA** was subjected to a strip search while in the custody of defendants without any legal reason or justification.

17. That Plaintiff **DAIHO GUERRA** was arraigned after his arrest and thereafter falsely and maliciously prosecuted with committing the crime of Criminal Possession of Marihuana in the Third Degree and other related offenses.

18. Thereafter, Plaintiff **DAIHO GUERRA** remained incarcerated for over 24 hours and was required to make numerous court appearances over an extended period of time until all charges against him were summarily dismissed by the District Attorney's Office on 7/3/12.

19. Plaintiff **DAIHO GUERRA** sustained physical and emotional pain and injuries as a

result of this incident.

20. That within ninety (90) days after the causes of actions accrued herein, and more than thirty (30) days prior to the commencement of this action, the Plaintiff **DAIHO GUERRA** caused the notice of claim, in writing, sworn to by and on behalf of the claimants, the Plaintiff herein, containing the statement of the name and place of residence of the claimants by the street and number and their attorney, and describing the time when the particular claim and circumstances under which the damages and injuries were sustained, the cause thereof, and so far as practical, the nature and extent of the injuries to be personally served upon the defendant CITY, their agents, servants and/or employees at the Law Département, -

21. This action was so commenced within one (1) year and ninety (90) days after said cause of action accrued herein, and for more than thirty (30) days prior to the commencement of this action, defendant CITY neglected, refused and failed to make an adjustment of said claim, and said claim remains unadjusted and unpaid, although plaintiff herein has requested and demanded that the same be paid and adjusted.

22. That the defendants requested an oral examination pursuant to General Municipal Law Section 50-H and said request was complied with.

AS AND FOR A FIRST CAUSE OF ACTION ON BEHALF OF
PLAINTIFF DAIHO GUERRA

23. Plaintiff **DAIHO GUERRA** repeats, reiterates and realleges each and every allegation contained in paragraphs numbered 1 – 22 with the same force and effect as if fully set forth at length herein.

24. That on or about 4/24/12, at approximately 6:00 p.m., the Plaintiff **DAIHO GUERRA** was without just cause, probable cause or provocation, and with reckless, negligent and

callous disregard for the truth, and without investigation, touched, grabbed, handcuffed, seized and arrested in an excessive manner and with excessive force by CITY, NYPD, VILLAVIZAR, OSULLIVAN, DOE and ROE, their agents, servants and/or employees, and in particular, by VILLAVIZAR, OSULLIVAN, DOE and ROE.

25. That on or about 4/24/12, at approximately 6:00 p.m., the Plaintiff **DAIHO GUERRA** while lawfully in the vicinity of 2508 Wilson Avenue, County of Bronx, City and State of New York, was without just cause, probable cause or provocation, maliciously, intentionally and falsely accused by CITY, NYPD, VILLAVIZAR, OSULLIVAN, DOE and ROE of having committed the crime of Criminal Possession of Marihuana in the Third Degree.

26. That on or about 4/24/12, and upon arresting the Plaintiff **DAIHO GUERRA** and depriving him of his liberty, CITY, NYPD, VILLAVIZAR, OSULLIVAN, DOE and ROE took the Plaintiff **DAIHO GUERRA** to a police station in the County of Bronx and entered him on the records as under arrest.

27. That on or about 4/24/12, the CITY, NYPD, VILLAVIZAR, OSULLIVAN, DOE and ROE further caused Plaintiff **DAIHO GUERRA** to have his fingerprints and photographs to be taken without his consent and in accordance with police procedures for the arrest of criminals and held him on various criminal charges at various police stations, correctional facilities and at the Courthouse located at 215 East 161st Street, County of Bronx, City and State of New York.

28. That on or about 4/24/12 Plaintiff **DAIHO GUERRA** was aware of his arrest and confinement, he did not consent to his arrest or confinement, and said confinement, seizure, arrest and detention was without legal justification.

29. That at all times hereinafter mentioned the actions of CITY, NYPD, VILLAVIZAR, OSULLIVAN, DOE and ROE as described above were carried out in a reckless, deliberate, willful,

wanton, malicious and grossly negligent manner.

30. That by reason of the foregoing, Plaintiff **DAIHO GUERRA** has been damaged in an amount that exceeds the jurisdictional limits of all lower trial courts of this state.

AS AND FOR A SECOND CAUSE OF ACTION ON BEHALF OF
PLAINTIFF DAIHO GUERRA

31. Plaintiff **DAIHO GUERRA** repeats, reiterates and realleges each and every allegation contained in paragraphs numbered 1 – 30 with the same force and effect as if fully set forth at length herein.

32. That on or about 4/24/12, a criminal complaint was issued by the CITY, NYPD, VILLAVIZAR, OSULLIVAN, DOE and ROE, their agents, servants and/or employees, without probable cause, reasonable cause or legal justification.

33. That on or about 4/24/12 a criminal action against Plaintiff **DAIHO GUERRA** was commenced by CITY, NYPD, VILLAVIZAR, OSULLIVAN, DOE and ROE, their agents, servants and/or employees, without probable cause, reasonable cause or legal justification.

34. That solely as a result of the aforesaid, the Plaintiff **DAIHO GUERRA'S** life was interfered with.

35. That the criminal action against Plaintiff **DAIHO GUERRA** was continued for an extended period of time by defendants with malice and bad faith.

36. That solely as a result of the false arrest, assault, battery, false imprisonment and malicious prosecution of the Plaintiff **DAIHO GUERRA**, he was deprived of his liberty for an extended period of time and was subjected to scorn, ridicule, embarrassment and was degraded in the esteem of the community both personally and professionally.

37. That on or about 7/3/12 the criminal action against Plaintiff **DAIHO GUERRA** was

terminated favorably by dismissal.

38. That the actions of CITY, NYPD, VILLAVIZAR, OSULLIVAN, DOE and ROE as described above were carried out in a reckless, deliberate, willful, wanton, malicious and grossly negligent manner.

39. That by reason of the foregoing, Plaintiff **DAIHO GUERRA** has been damaged in an amount that exceeds the jurisdictional limits of all lower trial courts of this state.

**AS AND FOR A THIRD CAUSE OF ACTION ON BEHALF OF
PLAINTIFF DAIHO GUERRA**

40. Plaintiff **DAIHO GUERRA** repeats, reiterates and realleges each and every allegation contained in paragraphs numbered 1 – 40 with the same force and effect as if fully set forth at length herein.

41. That on or about 4/24/12, and while in the custody of the defendants in the County of Bronx, City of New York, the Plaintiff **DAIHO GUERRA** was intentionally touched, pushed, assaulted, battered, violated, strip searched, humiliated, photographed and handcuffed by the CITY, NYPD, VILLAVIZAR, OSULLIVAN, DOE and ROE, who were acting within the scope of their employment and authority in such a manner as to knowingly cause injury to plaintiff.

42. That on or about 4/24/12 CITY, NYPD, VILLAVIZAR, OSULLIVAN, DOE and ROE, their agents, servants and employees, acting as agents and on behalf of the CITY, NYPD, VILLAVIZAR, OSULLIVAN, DOE and ROE, within the scope of their employment, did intentionally, willfully and maliciously assault and batter the Plaintiff **DAIHO GUERRA** in that they have the real or apparent ability to cause imminent harmful and/or offensive bodily contact and intentionally did a violent and/or menacing act which threatened such contact to the Plaintiff **DAIHO GUERRA** and their act caused apprehension of such contact in the plaintiff, and in a

hostile and/or offensive manner touched and beat the plaintiff and/or offensive bodily contact to the Plaintiff **DAIHO GUERRA** and caused such battery in and about his head, neck, back, body and limbs.

43. That by reason of the aforesaid intentional assault and battery which was committed in an excessive manner and with excessive force and without legal justification or privilege by the defendants, their agents, servants and employees, who were acting within the scope of their employment and authority and without any probable or reasonable cause, Plaintiff **DAIHO GUERRA** suffered great and permanent bodily injury in and about his head, neck, back, body and limbs and was rendered sick, sore, lame and disabled, and suffered conscious pain and suffering, and that he was otherwise damaged.

44. That as a result of the aforesaid assault and battery the Plaintiff **DAIHO GUERRA** was caused to sustain serious, severe, painful and permanent bodily injuries so that he was rendered sick, sore, lame and disabled and so remains and was and will be compelled to seek medical aid and attention and incur expenses for same in an endeavor to cure himself of his said injuries and he was and will be prevented from attending his usual occupation and duties.

45. That at all times hereinafter mentioned the actions of CITY, NYPD, DOE and ROE as described above were carried out in a reckless, deliberate, willful, wanton, malicious and grossly negligent manner.

46. That by reason of the foregoing, Plaintiff **DAIHO GUERRA** has been damaged in an amount that exceeds the jurisdictional limits of all lower trial courts of this state.

AS AND FOR A FOURTH CAUSE OF ACTION ON BEHALF OF
PLAINTIFF DAIHO GUERRA

47. Plaintiff **DAIHO GUERRA** repeats, reiterates and realleges each and every

allegation contained in paragraphs numbered 1 - 46 with the same force and effect as if fully set forth at length herein.

48. That the CITY, NYPD, their agents, servants and employees were negligent, careless and reckless in hiring, retaining, training, monitoring, retraining, supervising and promoting its employees including but not limited to VILLAVIZAR, OSULLIVAN, DOE and ROE, in that said police officers, as employees of CITY and NYPD, were not qualified to be hired or retained or promoted as police officers, lacked the experience, skill, training and ability to be employed, retained and utilized in the manner that each was employed by CITY and NYPD.

49. That the CITY and NYPD failed to exercise due care and caution in its hiring, retaining, training and/or promoting practices in that CITY and NYPD failed to adequately test, analyze test results, and/or investigate above mentioned police officers backgrounds and performances.

50. That the CITY and NYPD failed to exercise due care and caution in its hiring, retaining, training and/or promoting practices in that CITY and NYPD failed to adequately screen said police officers, failed to adequately monitor said police officers, and failed to adequately discipline said police officers when they violate Patrol Guidelines.

51. Defendant CITY and NYPD were also negligent in that prior to and at the time of the acts complained of herein, due to the prior history of the police officer defendants named herein, knew or should have known of the bad disposition of said defendants, or at the very least had knowledge of facts that would put a reasonably prudent employer on inquiry concerning their bad disposition and the fact that defendant police officers were not suitable to be hired and employed by the CITY and NYPD and that due to their lack of training, these officers should have had adequate supervision so that they would not arrest innocent individuals nor use excessive force during the

arrest process.

52. That by reason of the above, the Plaintiff **DAIHO GUERRA** was injured in mind and body as he was arrested, prosecuted and rendered sick, sore, and damaged.

53. That at all times hereinafter mentioned the actions of CITY, NYPD and all defendants herein as described above were carried out in a reckless, deliberate, willful, wanton, malicious and grossly negligent manner.

54. That by reason of the foregoing, Plaintiff **DAIHO GUERRA** has been damaged in an amount that exceeds the jurisdictional limits of all lower trial courts of this state.

**AS AND FOR A FIFTH CAUSE OF ACTION ON BEHALF OF
PLAINTIFF DAIHO GUERRA**

55. Plaintiff **DAIHO GUERRA** repeats, reiterates and realleges each and every allegation contained in paragraphs numbered 1-54 with the same force and effect as if fully set forth at length herein.

56. In arresting Plaintiff **DAIHO GUERRA**, police officers including but not limited to VILLAVIZAR, OSULLIVAN, DOE and ROE, acting in their capacity as agents, servants and employees of CITY and NYPD, were motivated by an ulterior purpose to do harm, without justification or economic or social excuse.

57. In arresting Plaintiff **DAIHO GUERRA**, police officers including but not limited to VILLAVIZAR, OSULLIVAN, DOE and ROE, acting in their capacity as agents, servants and employees of CITY and NYPD, sought either a detriment to Plaintiff **DAIHO GUERRA** or a collateral advantage to the CITY and NYPD that is outside the legitimate ends of effectuating an arrest.

58. As a result of the abuse of process by defendants herein, Plaintiff **DAIHO GUERRA**

sustained multiple injuries including but not limited to loss of liberty, emotional distress, humiliation, loss of enjoyment of life, and fear and intimidation for his safety.

59. That at all times hereinafter mentioned the actions of CITY, NYPD and all defendants herein as described above were carried out in a reckless, deliberate, willful, wanton, malicious and grossly negligent manner.

60. That by reason of the foregoing, Plaintiff **DAIHO GUERRA** has been damaged in an amount that exceeds the jurisdictional limits of all lower trial courts of this state.

AS AND FOR A SIXTH CAUSE OF ACTION ON BEHALF OF
PLAINTIFF DAIHO GUERRA

61. Plaintiff **DAIHO GUERRA** repeats, reiterates and realleges each and every allegation contained in paragraphs numbered 1 - 60 with the same force and effect as if fully set forth at length herein.

62. That on 4/24/12, at approximately 6:00 p.m., within the vicinity of 2508 Wilson Avenue, County of Bronx, City and State of New York, the CITY and NYPD were present through its agents, servants and/or employees including but not limited to VILLAVIZAR, OSULLIVAN, DOE and ROE who were acting in the course of their employment and under the color of law to wit: the statutes, ordinances and regulations, policies and customs and usage of the State of New York and/or City of New York.

63. That Plaintiff **DAIHO GUERRA** was lawfully in the above vicinity at the above time when he was stopped, questioned, searched and seized solely on the basis of his age and/or race and for no legal or legitimate reason.

64. That said illegal stop and seizure was part of the CITY'S custom and practice and/or practice of racial profiling, and/or meeting arrest or summons quotas, and/or the illegal stop and

search of civilians which was authorized by, or met with the tacit approval of the CITY and NYPD under their "Stop, Question and Frisk" policy or program ("Stop and Frisk").

65. That under the "Stop and Frisk" program the CITY and NYPD permitted, condoned, or acted with deliberate indifference to the racial disparity of its' application, to the fact that unnecessary or illegal frisks or searches were conducted, that very low percentages of seizures, frisks and searches resulted in arrests or the recovery of contraband, that pretextual reasons are provided for "Stop and Frisk", that officers do not always fill out Stop and Frisk reports, i.e. UF-250s, and are not disciplined when they fail to do so, that stop and frisks are conducted without reasonable suspicion, and that the program of "Stop and Frisk" has resulted in illegal stops, seizures, frisks, arrests and the use of physical force.

66. That the CITY and NYPD have failed to discipline, train, monitor or retrain offending police officers who engaged in stops and frisks without any legal justification and has failed to discipline police officers who fail to fill out required UF-250s.

67. That the CITY and NYPD have failed to adequately investigate and/or discipline officers who use excessive force, stop and frisk innocent citizens who have not done anything illegal or acted in suspicious manner warranting a seizure, who failed to report misconduct of fellow officers, who destroy evidence, who engage in fraud, misrepresentations, deceit, and maliciously participate in and instigate prosecutions of innocent citizens.

68. It is alleged herein that Plaintiff **DAIHO GUERRA** was stopped and seized absent reasonable suspicion. That said actions of defendants were pursuant to an illegal and improper Stop and Frisk program that was promulgated by defendants. That such custom, policy and program has created a class of citizens, including Plaintiff **DAIHO GUERRA**, who have been illegally stopped and seized, searched and questioned based on their race, and in order to meet arrest quotas. Evidence

of said policy is as follows:

a. That in a class action lawsuit David Floyd, et. al. v. City of New York, et. al., pending in United States District Court, Southern District of New York, 08 CIV 1034, in a decision dated 5/16/12 certifying a class action lawsuit, it was found that between the years of 2005 and 2009 a reported 2.8 million people in New York City have been stopped and frisked. Of said number more than 87% were minority citizens. Summons and arrests were issued or made in approximately 10% of the reported stops. Meaning that based on their own records, defendants' suspicions are incorrect approximately 9 out of 10 stops.

b. The Honorable Shira A. Scheindlin, found in the Floyd decision that:

- i. It is indisputable that NYPD has an enormous Stop and Frisk program;
- ii. Evidence shows that the Stop and Frisk program is organized and hierarchical;
- iii. Stop and Frisk program has been designed and revised at highest levels of defendants;
- iv. The implementation of the program is conducted according to uniform and centralized rules;
- v. Monitoring of the program is hierarchical;
- vi. The program is the result of institutional decisions and directives.

c. Justice Scheindlin further found that a preponderance of evidence shows that defendants policy of establishing performance standards and demanding increased levels of stop and frisks results in putative class of aggrieved citizens. The Court noted that street level stops have risen every year. That in 2004, defendants documented 313,000 stops, and in 2011 they reported 684,000 stops. In a Police Officer Performance Objectives Operation Order dated 10/17/11, Commissioner Kelly directed that "Department managers can and must set performance goals - relating to "the

issuance of summons, the stopping and questioning of suspicious individuals and the arrests of criminals." It further states that "uniformed members who do not demonstrate activities . . . or who fail to engage in proactive activities . . . will be evaluated accordingly and their assignments reassessed."

69. Other instances of an illegal and/or improper stop and frisk program custom or practice and/or excessive use of force and filing of false charges includes but not limited to:

a. On 4/12/11 in the vicinity of Walton Avenue and Mt. Hope Place, Bronx, NY, while doing nothing illegal or improper, Lonnie Thompson was approached by several uniformed police officers for no reason and without reasonable suspicion. After being stopped, Mr. Thompson was patted down and searched. He was arrested and charged with Criminal Possession of a Weapon in the Fourth Degree. This, even though the "weapon" was a bona fide work tool used in the course of Mr. Thompson's employment. Mr. Thompson was subjected to a strip search at the 46th Precinct. All charges were dismissed.

b. On 5/4/11 in the vicinity of 2345 Jerome Avenue, Bronx, NY, Alex Niewkerk, who is handicapped, was sitting in his legally parked vehicle and waiting for his friends to finish shopping at a nearby store. All of a sudden several undercover police officers from Bronx Narcotics approached his vehicle for no reason and without reasonable suspicion ordered him out of said vehicle. Mr. Niewkerk was subjected to a pat down and search. He was subsequently arrested for possession of a controlled substance in the seventh degree even though the "substance" recovered from his pants pocket was his own prescribed pain medication. Mr. Niewkerk was subjected to a strip search and forced to move his body in ways that are extremely painful given his medical status and condition. All charges were dismissed.

c. On 6/2/11 in the vicinity of 985 Simpson Street, Bronx, NY, Jesus Rosario, an infant,

was approached by several police officers from the 41st Precinct. He was told to "get on the wall" and thereafter patted down and searched. Mr. Rosario was accused of Trespassing in the Second Degree. Mr. Rosario was doing nothing illegal or improper at the time the officers approached as he was simply exiting 985 Simpson Street after visiting his father who resides in said building. After being arrested, Mr. Rosario was subjected to a strip search at the 41st Precinct. The case was declined to be prosecuted by the District Attorney's Office.

d. On 8/1/12 in the vicinity of 1000 Simpson Street, Bronx, NY, Nicholas Hernandez and Dilson Pena were sitting outside of their building on a public bench and doing nothing illegal or improper. All of a sudden, several police officers from the 41st Precinct approached them for no reason and told them to "assume the position" and submit to a frisk. Mr. Hernandez and Mr. Pena were accused of possession of marihuana even though no marihuana was recovered. They were each subjected to a strip search at the 41st Precinct. All charges against them were declined to be prosecuted by the District Attorney's Office.

e. On 1/22/11 in the vicinity of 808 Park Avenue, Brooklyn, NY, Captain Michelle Culp, a now decorated retired Captain for New York City Department of Corrections, was visiting her sick and elderly mother at the aforementioned address and decided to walk her mother's dog. In so doing, Captain Culp was approached by several uniform housing police officers and accused of Trespassing in the Second Degree. She was patted down and searched. This, despite the fact that Captain Culp explained that she was visiting her mother and her identification and personal belongings were in her mother's apartment in the same building. All charges were dismissed.

f. On 5/20/11 in the vicinity of Park Avenue and East 138th Street, Bronx, NY, Patrick Nielson was exiting the number 4 subway train and going to his car which was parked nearby when he was followed, stopped, frisked, and assaulted by several undercover police officers from Bronx

Narcotics for no reason. Thereafter, he was arrested and accused of possession of a controlled substance. Mr. Nielson was subjected to a strip search. The "controlled" substance was Mr. Nielson's prescribed medicine. All charges were dismissed.

g. On 6/22/10 in the vicinity of 139th Street and Lenox Avenue, New York, NY, Wilford Person was approached by several undercover police officers from Manhattan North Narcotics for no legitimate reason. Mr. Person was thereafter told to get against a fence and patted down and searched. He was accused of possession of marihuana. Mr. Person was simply playing basketball at the time the police approached him. After being arrested and subjected to a strip search Mr. Person was prosecuted. All charges were eventually dismissed.

h. On 5/2/12 in the vicinity of 1912 Third Avenue, New York, NY, Jose Baez, the manager of a local eyeglass store, left the store to buy his lunch. After leaving the store Mr. Baez, for no reason at all, was approached by several undercover police officers from Manhattan North Narcotics, and was detained, patted down, searched, and falsely accused of selling marihuana. Mr. Baez was subjected to a strip search. All charges against him were dismissed.

i. On 11/13/10 in the vicinity of 1113 Boston Road, Bronx, NY, Alpha Mahoi, was doing nothing illegal or improper when, for no reason, he was approached by several undercover police officers from Bronx Narcotics and accused of being involved in the sale of cocaine. He was cuffed, patted down, searched, arrested and strip searched at the precinct. All charges were dismissed.

j. On 3/10/12 in the vicinity of 1821 Davison Avenue, Bronx, NY, Keyewanie Blackledge, Dwayne Smith and Richard Campbell were leaving his friend's apartment when they were approached by several uniform police officers from the 46th Precinct for no reason and told to "get on the wall" and "get on the floor" and thereafter patted down and searched. They was charged with Trespassing in the Second Degree. All charges were dismissed.

k. On 8/1/12 in the vicinity of 1000 Simpson Street, Bronx, NY, Dylan Pena was outside recording on his cell phone several police officers from the 41st Precinct arresting a person from the neighborhood. Upon seeing Mr. Pena recording the incident several police officers grabbed him and pushed him to the ground and seized his cell phone without any reason to do so. All data on the phone was subsequently erased by the officers. Mr. Pena was also patted down and searched. He was charged with resisting arrest and was strip searched at the 41st Precinct. The charges were declined to be prosecuted by the District Attorney's Office.

l. On 5/17/11 in the vicinity of 1690 Clay Avenue, Bronx, NY, Gregory Williams was leaving a family friend's apartment after helping her move furniture so she could clean. Upon exiting the building Mr. Williams, for no reason at all, was approached by several uniformed police officers from the 44th Precinct and patted down and searched. He was accused of Trespassing in the Second Degree despite his family friend informing the police officers at the scene and at the 44th Precinct that he had permission to be in the building. Mr. Williams was strip searched. All charges against him were dismissed.

m. On 3/16/11 in the vicinity of 1740 Grand Avenue, Bronx, NY, Lindon Grant just left his apartment to walk approximately 1 block to buy breakfast before going to work. After he bought his breakfast and left the store he was approached by several undercover police officers from the 46th Precinct for no reason and patted down and searched. He was then accused of selling marihuana. Mr. Grant was arrested, strip searched and prosecuted for several months. All charges were dismissed.

n. On 8/2/09 in the vicinity of Southern Boulevard and East 175th Street, Bronx, NY Jose Suazo was approached by several uniformed officers from the 42nd Precinct for no reason. Mr. Suazo was patted down and searched. Despite the fact that he had nothing illegal on his person he

was charged with possession of marihuana. While already in custody in a police van shots were fired in a nearby park. When Mr. Suazo got to the precinct he found out that even though he was already in custody in the police van when the shots were fired, he was charged with possession of a weapon in the second degree. Mr. Suazo was subjected to a strip search. All charges were eventually dismissed.

o. On 8/12/19 in the vicinity of 894 Rogers Place, Bronx, NY, Edmanuel Benitez was standing outside of the building and waiting for a friend to come outside to play basketball. All of a sudden he was approached for no reason by officers from the 41st Precinct and thereafter patted down, searched, arrested, strip searched and prosecuted for the sale of marihuana. All charges were dismissed.

p. On 2/19/12 Daniel Rodriguez was leaving a store in the vicinity of Jerome Avenue and West 192nd Street when he was summarily grabbed, pushed against a wall, patted down, frisked, searched and then handcuffed by several officers from Bronx Narcotics. Mr. Rodriguez was doing nothing illegal or improper at the time. He was subsequently strip searched and charged with possession of a controlled substance in the seventh degree. All charges were dismissed.

q. On 9/28/11 Shakeem Enang was in the vicinity of West 179th Street and University Avenue when he was approached by several plain clothes officers from Bronx Narcotics Division. Mr. Enang was doing nothing illegal at the time the officers approached or anytime prior to the officers approaching. He was grabbed, seized, frisked, searched and then arrested. Mr. Enang was charged with criminal sale of a controlled substance. He was strip searched at the 46th Precinct. All charges were dismissed.

r. On 4/29/11 Jose Gonzalez was in the vicinity of Prospect Avenue and East 175th Street, Bronx, New York, at approximately 11:30 p.m., when he was approached by several plain clothes

police officers from Bronx Narcotics. At the time the officers approached Mr. Gonzalez, and at anytime before they approached, Mr. Gonzalez was not doing anything illegal. He was simply going to the store to buy soda and a pack of cigarettes. Mr. Gonzalez was grabbed, seized, frisked, searched and then arrested by said officers. Mr. Gonzalez was charged with criminal sale of a controlled substance in the third degree. He was strip searched while in custody. All charges were dismissed.

s. On 3/16/13, at approximately 9:30 p.m., Timothy Brooks, an infant, and his brother Jonathan Gordon, had just left their grandmother's apartment at 2000 Valentine Avenue, Bronx, NY to go to the store to buy milk. Mr. Brooks and Mr. Gordon did not even have the opportunity to exit the building when they were approached by several officers from the 46th Precinct for no reason at all, and subjected to a pat down and search. Even though Mr. Brooks and Mr. Gordon were doing nothing illegal at the time and had full permission and authority to be in the building, they were arrested and charged with Trespassing in the Second Degree. At the 46th Precinct they were subjected to a strip search. Eventually all charges against them were dismissed.

t. On 7/4/11, at approximately 11:20 p.m., Christina Vilella was in the vicinity of 894 Rogers Place and doing nothing illegal, improper or suspicious. Several police officers from the 41st Precinct approached Ms. Vilella and thereafter grabbed her, searched her, and summarily handcuffed her without any legal reason or justification. Ms. Vilella was charged with Resisting Arrest. All charges against her were dismissed on 6/29/12.

70. As is evidence from the above, Plaintiff **DAIHO GUERRA'S** injuries including the violation of his constitutional rights, the deprivation of his freedom, falsely and maliciously being prosecuted, physical and emotional injuries, are the direct and proximate result of the CITY'S and NYPD'S policies and/or deliberate indifference to practices which involve the excessive use of force,

false arrest, police cover-ups, witness intimidation, malicious prosecution, illegal stop, questions and frisks, strip searches, Fourth Amendment violations, and deliberate indifference to the need to train, supervise, monitor, investigate and discipline, including suspension, dismissal and/or reassignment of offending police officers. The practice is widespread and pervasive throughout the entire City of New York.

71. The CITY and NYPD knew or should have known of the customs and police practices of its officers which included but was not limited to: the failing to preserve and/or destruction of exculpatory evidence, threatening to arrest witnesses to police misconduct and engaging in cover-ups, fraud, perjury, deceit and malfeasance.

72. That the acts of employees of the CITY and NYPD, i.e. police officers, who violate the civil and constitutional rights of the citizens of the City of New York routinely go unreported, undisciplined and their acts condoned by other officers, including their supervisors. Upon information and belief, the supervisors of defendant police officers herein were aware of the conduct of defendant police officers and failed to stop, report or intervene in the misconduct.

73. The CITY and NYPD'S tolerance for brutality, excessive force, illegal and/or retaliatory arrests, and their emphasis to come down hard on quality of life infractions leads to a systemic practice and policy wherein police officers seem fairly tolerant of police brutality, silence in the face of brutality and/or illegal stops, frisks, searches, seizures and/or arrests, and engage in the practice of meeting arrest quotas. A systemic practice where officers who report said misconduct are not viewed as "good cops" but rather as outcasts and are ostracized and often transferred to other assignments thereby perpetuating the illegal conduct of the NYPD and thusly the CITY.

74. Some instances where officers were treated as outcasts for reporting misconduct and/or arrest/summons quota system are as follows:

a. The existence of arrest quotas, summons quotas and approval of illegal stops and arrests have been exposed by Police officer Adrian Schoolcraft in a separate lawsuit which was cited by Justice Sheindlin in Floyd.

b. Justice Sheindlin referenced the deposition of Police Officer Adhly Polanco of the 41st Precinct stating that commanding officers set specific quotas for arrests and summons and for stop and frisks and threatened to reduce overtime for officers who failed to perform well and re-assign those who fail to meet quotas to less desirable posts.

c. According to secretly tape recorded conversations made by Schoolcraft, a Lieutenant, a Deputy Inspector and Chief of Transportation can be heard encouraging and demanding increased stops, summons and detentions and arrests.

d. Police Officer Craig Daihos of the 42nd Precinct filed a lawsuit against the NYPD claiming the existence of a quota system and a systematic retaliation and harassment to those who did not comply.

e. Retired Police officer James Griffin filed a lawsuit claiming that in the NYPD there exists a culture wherein officers who report corruption will face harassment and a hostile work environment and that this conduct was tolerated by supervisors within the NYPD.

f. Police Officer Anthony Minoia, an officer with an Ivy League degree, assigned to the 42nd Precinct, was reassigned to a "punishment post" due to the fact that he failed to write a sufficient amount of summons and stated "I'm not going to pull out my summons book and write a summons because my boss is telling me he's going to make it difficult for me if I don't."

75. In sum, the CITY and NYPD are responsible for creating a custom, policy or practice wherein many officers do not seem to believe that anything is really wrong with stopping and searching innocent citizens or using unnecessary or excessive force or falsely arresting citizens to

meet an arrest quota.

76. That the above customs, policies and/or practices and the deliberate indifference thereto, was a direct and proximate cause of the illegal seizure of Plaintiff **DAIHO GUERRA**, the excessive use of force on Plaintiff, and the false arrest and malicious prosecution of Plaintiff. The CITY and NYPD'S policies, customs and/or practices deprived the Plaintiff of his rights and liberties as set forth in the Constitutions of the United States and the State of New York and under 42 U.S.C §§ 1983, 1986 and 1988.

77. That said actions violated the Fourth and Fourteenth Amendments to the Constitution of the United States, violated Plaintiff's right to be secure in person, and that the defendants used excessive, unnecessary and unlawful force, which constituted cruel and inhumane treatment and denied him due process of law.

78. Moreover, the CITY and NYPD caused or created a policy and/or custom, and acted with deliberate indifference to patterns and/or police practices which included illegal seizures, excessive or arbitrary use of force, illegal use of police equipment, destruction of evidence, intimidation of witnesses, illegal arrests, failing to gather evidence when allegations of police misconduct are involved, condoning a code of silence within the NYPD regarding misconduct, failing to take police reports of illegal conduct, failing to properly supervise, train, investigate or discipline officers, and any and/or all of the above have contributed to Plaintiff's false arrest, malicious and false prosecution, and injuries.

79. That the Plaintiff did not commit any illegal act, either before or at the time he was falsely arrested and imprisoned, assaulted, battered and deprived of his constitutional rights as set forth in the Constitution of the United States and 42 U.S.C § 1983.

80. That by reason of the foregoing, Plaintiff **DAIHO GUERRA** has been damaged in an

amount that exceeds the jurisdictional limits of all lower trial courts of this state.

AS AND FOR A SEVENTH CAUSE OF ACTION ON BEHALF OF
PLAINTIFF DAIHO GUERRA

81. Plaintiff **DAIHO GUERRA** repeats, reiterates and realleges each and every allegation contained in paragraphs numbered 1 - 80 with the same force and effect as if fully set forth at length herein.

82. At all times mentioned herein and above, defendants CITY and NYPD employed VILLAVIZAR, OSULLIVAN, DOE and ROE as police officers and named defendants were acting under color of law, to wit: the statutes, ordinances and regulations, policies and customs and usage of the State of New York and/or City of New York.

83. Plaintiff **DAIHO GUERRA** is and at all times relevant herein, a citizen of the United States and a resident of Bronx County in the State of New York and brings this cause of action pursuant to 42 United States Code, Section 1983 and 42 United States Code, Section 1988.

84. That on or about 4/24/12, defendants CITY, NYPD, VILLAVIZAR, OSULLIVAN, DOE and ROE without probable cause, reasonable cause or legal justification and while effectuating the seizure of plaintiff **DAIHO GUERRA**, did search, seize, assault and commit a battery and grab the Plaintiff **DAIHO GUERRA** without a court authorized arrest warrant or search warrant and defendants did physically seize Plaintiff **DAIHO GUERRA** during the arrest process in an unlawful and excessive manner. Plaintiff **DAIHO GUERRA** was falsely arrested, unlawfully imprisoned and strip searched and as a result of defendants' conduct maliciously prosecuted without the defendants possessing probable cause, reasonable cause or legal justification to do so.

85. The above actions of defendants CITY, NYPD, VILLAVIZAR, OSULLIVAN, DOE and ROE and ROE resulted in Plaintiff **DAIHO GUERRA** being deprived of the following rights

under the United States Constitution: a) Freedom from assault to his person; b) Freedom from battery to his person; c) Freedom from illegal search and seizure; d) Freedom from false arrest; e) Freedom from malicious prosecution; f) Freedom from the use of excessive force during the arrest process; and g) The right to Due Process of Law.

86. In addition to the above, defendants CITY and NYPD have as a matter of policy, custom and practice and with deliberate indifference failed to adequately train, monitor, supervise, discipline, sanction or otherwise direct its police officers, including the officers involved in this case and any and all unnamed officers involved in the unlawful seizure and arrest of plaintiff, regarding the protection of the constitutional rights of citizens.

87. Defendants CITY, NYPD, VILLAVIZAR, OSULLIVAN, DOE and ROE subjected Plaintiff **DAIHO GUERRA** to such deprivation in a malicious, reckless, deliberate, intentional, grossly negligent and with a callous disregard of Plaintiff **DAIHO GUERRA'S** rights and with deliberate indifference to those rights under the Fourth, Fifth, Sixth, Fourteenth and all other related Amendments to the United States Constitution.

88. The direct and proximate result of the defendants CITY, NYPD, VILLAVIZAR, OSULLIVAN, DOE and ROE acts are that Plaintiff **DAIHO GUERRA** has suffered severe and permanent injuries, loss of liberty and companionship, forced to endure pain and suffering, emotional distress and severe and significant damage to standing and reputation in the community.

89. That by reason of the foregoing, Plaintiff **DAIHO GUERRA** has been damaged in an amount that exceeds the jurisdictional limits of all lower trial courts of this state.

WHEREFORE, the Plaintiff **DAIHO GUERRA** demands judgment against the defendants on the First Cause of Action through the Seventh Cause of Action in a sum that exceeds the jurisdictional limits of all lower trial courts of this state for each cause of action, all together with attorney's fees, punitive damages and the costs and disbursements of this action.

Dated: New York, New York
May 31, 2013

Yours, etc.,



NEIL WOLLERSTEIN, ESQ.

Attorney for Plaintiff
59 Maiden Lane, 17th Floor
New York, NY 10038
(212) 412-4705
File No.: NW-448

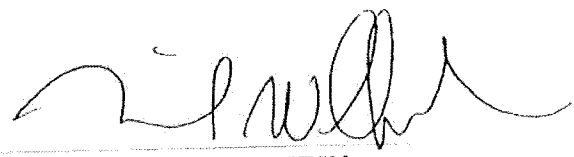
TO: Michael Cardoza, Esq.
100 Church Street
New York, NY 10007

ATTORNEY VERIFICATION

NEIL WOLLERSTEIN, an attorney duly admitted to practice before the courts of the State of New York affirms the following to be true pursuant to CPLR 2106 and under the penalties of perjury:

1. The undersigned, an attorney admitted to practice in the Courts of the State of New York states that he is retained on behalf of plaintiff **DAIHO GUERRA**.
2. That affirmant has read the foregoing **AMENDED VERIFIED COMPLAINT** and knows the contents thereof; that the same is true to affirmant's own knowledge except as to the matters therein stated to be alleged on information and belief; and that as to those matters affirmant believes them to be true.
3. Your affirmant further says that the reason this verification is made by affirmant and not the plaintiff is that the plaintiff is not within the County of New York where affirmant maintains his office.

Dated: New York, New York
May 31, 2013


NEIL WOLLERSTEIN

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

DAIHO GUERRA

Plaintiff,

– against –

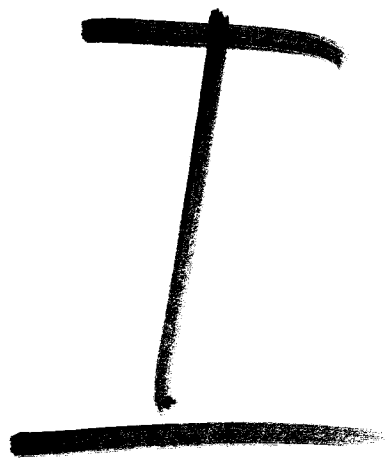
**CITY OF NEW YORK, NEW YORK CITY POLICE DEPARTMENT, POLICE OFFICER
ABRAHAM VILLAVIZAR, POLICE OFFICER DENNIS OSULLIVAN, POLICE OFFICER
JOHN DOE and POLICE OFFICER JOHN ROE**

Defendant(s).

AMENDED VERIFIED COMPLAINT

NEIL WOLLERSTEIN, ESQ.

Attorney for Plaintiff
59 Maiden Lane, 17th Floor
New York, NY 10038
Tel: (212) 412-4705
Fax: (917) 522-9703
File No.: NW-448



SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

-----x
DAIHO GUERRA,

Plaintiff(s),

-against-

CITY OF NEW YORK, NEW YORK CITY POLICE
DEPARTMENT, POLICE OFFICER ABRAHAM
VILLAVIZAR, POLICE OFFICER DENNIS
OSULLIVAN, POLICE OFFICER JOHN DOE AND
POLICE OFFICER JOHN ROE,

Defendant(s).
-----x

SECOND AMENDED
ANSWER TO
AMENDED COMPLAINT

Index #: 020802/2013E

Law Dept. #: 2013-008838

Your File #: NW-448

Defendants THE CITY OF NEW YORK, THE CITY OF NEW YORK S/H/A
NEW YORK CITY POLICE DEPARTMENT, POLICE OFFICER ABRAHAM VILLAVIZAR
and POLICE OFFICER DENNIS OSULLIVAN, by MICHAEL A. CARDOZO, Corporation
Counsel, answering the amended complaint, allege upon information and belief:

1. Deny each allegation set forth in paragraph(s) 13-17, 19, 24-30, 32-36, 38-39, 41-46, 48-54, 56-60, 63-67, 68 and all its subparts, 69 and all its subparts, 70-73, 74 and all its subparts, 75-80, 84-89, inclusive.
2. Deny knowledge or information sufficient to form a belief with respect to the truth of the allegations set forth in paragraph(s) 1, 6-8, 18, 37, 83, inclusive.
3. Deny the allegations set forth in paragraph(s) 20-22, inclusive, except that a notice of a claim was presented, that more than thirty days have elapsed without adjustment thereof.
4. Deny each allegation set forth in paragraph(s) 2, 3, 9-12, inclusive, except that the City of New York is a municipal corporation which employed POLICE OFFICER

ABRAHAM VILLAVIZAR and POLICE OFFICER DENNIS OSULLIVAN and maintains a Police Department pursuant to law.

5. Deny each allegation set forth in paragraph(s) 23, 31, 40, 47, 55, 61, 81, inclusive, except as otherwise pleaded herein.

6. Deny each allegation set forth in paragraph(s) designated 62, 82, inclusive, as the same are conclusory and evidentiary and present questions of law and fact which should be reserved for decision at the time of trial.

AFFIRMATIVE DEFENSE(S)

7. Plaintiff(s)' culpable conduct caused or contributed, in whole or in part, to his/her/their injuries and or damages.

8. At all times mentioned in the amended complaint, plaintiff(s) knew or should have known in the exercise of due/reasonable care of the risks and dangers incident to engaging in the activity alleged. Plaintiff(s) voluntarily performed and engaged in the alleged activity and assumed the risk of the injuries and/or damages claimed. Plaintiff(s) failed to use all required, proper, appropriate and reasonable safety devices and/or equipment and failed to take all proper, appropriate and reasonable steps to assure his/her/their safety. Plaintiff(s)' primary assumption of risk solely caused his/her/their injuries and/or damage and defendant(s) owed no duty to the plaintiff(s) with respect to the risk assumed. Plaintiff(s)' express assumption of risk solely caused his/her/their injuries and/or damage and defendant(s) owed no duty to the plaintiff(s) with respect to the risk assumed. Plaintiff(s)' implied assumption of risk caused or contributed, in whole or in part to his/her/their injuries. In any action for injuries arising from the use of a vehicle in, or upon which plaintiff(s) were riding; it will be claimed that the injuries and/or damages sustained were caused by the failure of the plaintiff(s) to use available seat-belts and/or other safety devices.

9. Defendants are immune from suit for their exercise of discretion in the performance of a governmental function and/or their exercise of professional judgment.

10. The amounts recoverable by plaintiff(s) are subject to limitation pursuant to Section 1601 of the Civil Practice Law and Rules, by reason of the culpable conduct of other person(s) who are, or with reasonable diligence could have been made party defendant(s) to this action, or pursuant to Section 15-108 of the General Obligations Law, by reason of a prior settlement between plaintiff(s) and said person(s), or pursuant to Section 4545 of the Civil Practice Law and Rules are subject to reduction by collateral sources received by plaintiff(s), or by reason of the fact that punitive damages are not recoverable against municipal defendant(s).

11. If plaintiff demonstrates that the acts complained of were undertaken in the scope of the actor(s) employment, then such acts as may have been committed by law enforcement officers in the employ of the City of New York were justified as being reasonably necessary, and were committed in good faith without malice and with probable cause, and in the exercise of professional judgment or the performance of discretionary functions for which defendant(s) are qualifiedly privileged under the laws of this State and of the United States. Individual defendant(s) represented by the Office of the Corporation Counsel (if any) did not violate any clearly established constitutional or statutory right of which a reasonable person would have known and therefore are/is protected by qualified immunity.

12. Plaintiff(s)' amended complaint fails to allege a prima facie case against the defendant answering hereby.

13. Plaintiff(s)' amended complaint fails to state a cause of action upon which relief can be granted.

WHEREFORE, defendant(s) demand judgment dismissing the amended complaint and all cross-claims against them, or, in the event that they are adjudged liable, granting judgment over, or apportioning such liability in accordance with their equitable shares of responsibility, and awarding the costs of this action, together with such other and further relief as to the court may seem just.

MICHAEL A. CARDOZO
Corporation Counsel
100 Church Street
New York, New York 10007

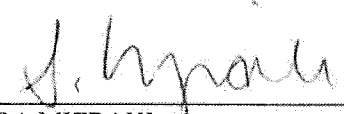
VERIFICATION

SHIRA MIZRAHI an attorney admitted to practice before the Courts of the State of New York, affirms pursuant to Rule 2106 of the Civil Practice Laws and Rules: affirmant is an employee of the Office of the Corporation Counsel; that affirmant has read the foregoing answer, cross-claim(s) and counterclaim(s), if any, and knows the contents thereof; that the same are true to affirmant's own knowledge, except as to the matters alleged upon information and belief, which affirmant believes to be true based upon the files, books and records maintained by The City of New York, New York City Health and Hospitals Corporation or the New York City Board/Department of Education, and the officers or agents thereof; and further swears that on this date he/she served said answer, cross-claim(s) and counterclaim(s), if any, together with the accompanying combined demands for particulars and discovery upon:

NEIL WOLLERSTEIN, ESQ.
the attorney(s) for Plaintiff(s)
at 59 MAIDEN LANE, 17TH FLOOR
NEW YORK, NY 10038

by mailing a copy to the person at the address designated by him or her for that purpose by depositing the same in a first class, postpaid, properly addressed wrapper, in a post office or official depository under the exclusive care and custody of the United States Postal Service within the State of New York.

Dated: New York, New York
July 8, 2013

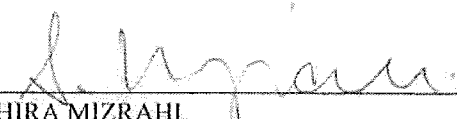

SHIRA MIZRAHI

STIPULATION/CERTIFICATION

IT IS HEREBY STIPULATED AND AGREED, that at any time prior to the filing of a note of issue in this action, plaintiff(s) may amend the complaint to name additional defendants herein, provided that such additional defendants shall not include the City of New York, the Board/Department of Education, Health & Hospitals Corporation, City University of New York, or any of their respective departments, subdivisions or employees, nor any other person entitled to defense or indemnification by the City of New York.

The signature below shall constitute the signature required pursuant to NYCRR 130-1.1-a and pertains to all of the enclosed documents: answer, cross-claim(s) and counter-claims(s), if any, together with the accompanying combined demands for particulars and discovery.

Dated: Bronx, New York
July 8, 2013

By: 
SHIRA MIZRAHI
Assistant Corporation Counsel

Attorney(s) for Plaintiff(s)

AFFIRMATION OF SERVICE

STATE OF NEW YORK, COUNTY OF NEW YORK, SS:

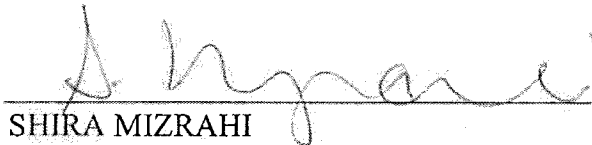
The undersigned, an attorney admitted to practice in the courts of New York State, shows: that she is employed in the office of the Corporation Counsel of the City of New York, and affirms this statement to be true under the penalties of perjury, pursuant to Rule 2106 CPLR:

That on the 8 day of July, 2013, she served the annexed SECOND AMENDED ANSWER upon:

NEIL WOLLERSTEIN, ESQ.
Attorney for Plaintiff
at 59 MAIDEN LANE, 17TH FLOOR
NEW YORK, NY 10038

being the address within the State theretofore designated by them for that purpose, by causing to be deposited a copy of the same, enclosed in a prepaid wrapper in a post office box situated in the Borough of Manhattan, City of New York, regularly maintained by the Government of the United States.

Dated: New York, New York
July 8, 2013


SHIRA MIZRAHI

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

DAIHO GUERRA,

Plaintiff,

- against -

CITY OF NEW YORK, NEW YORK CITY POLICE DEPARTMENT,
POLICE OFFICER ABRAHAM VILLAVIZAR, POLICE OFFICER
DENNIS OSULLIVAN, POLICE OFFICER JOHN DOE AND POLICE
OFFICER JOHN ROE,

Defendants.

SECOND AMENDED ANSWER TO AMENDED COMPLAINT

MICHAEL A. CARDOZO

Corporation Counsel of the City of New York

Attorney for Defendant

The City of New York

100 Church Street, 3rd Floor

New York, New York 10007

Of Counsel: Shira Mizrahi

Law Manager No. 2013-008352

J

PRELIMINARY CONFERENCE ORDER
SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX: PART IA-3

325 (d) _____

Daiho Guerra

Comp. Conf. 9/2/14

N.O.I. due 1/1

Plaintiff(s)

- against -

Index Number: 020802/2013

City of New York, Police Officer
Abraham Villavizar, Police Officer
Dennis O'Sullivan, Police Officer John
Defendant(s) John Roe

PC Date: 8/13/13

Hon.: Schachner

I. INSURANCE COVERAGE:

(a) Defendant: City of New York Self Insure Amt: _____
Defendant: _____ Amt: _____
Defendant: _____ Amt: _____
Defendant: _____ Amt: _____

(a) Defendant(s) _____ to provide evidence of all insurance within 60 days, to extent not previously provided.

II. BILL OF PARTICULARS:

A verified bill of particulars for affirmative defenses was served by defendants on May 22, 2013 within 60 days of this order or receipt of the demand and therefore, whichever is later. It served BP on 4/17/13.

III. MEDICAL REPORTS AND AUTHORIZATIONS (TO BE PROVIDED WITHIN 60 DAYS): HIPAA & ARONS Compliant

(a) Plaintiff(s) shall provide[^] authorizations to obtain records of all treating and examining health care providers, including diagnostic tests, x-rays, MRIs, EMGs, CT Scans, for injuries specified in the bill of particulars.

(b) Plaintiff(s) shall provide an authorization for collateral source information, if any. including AZ's for ACR, FDNY records if applicable

(c) If plaintiff is claiming a loss of income or wages, if plaintiff is self-employed, authorizations for IRS records, or if employed, then authorizations for employment records, shall be provided for the year of, year before and year after the date of the alleged accident, as well as authorizations for the period of time lost from work as a result of the alleged accident.

(d) If, plaintiff was a student at the time of the alleged accident, plaintiff shall provide an authorization for school records for the day of the accident and for the period of time lost from school as a result of the alleged accident.

(e) For cases alleging police assault or false arrest, plaintiff shall provide an authorization for unsealing of the Criminal Court file and for Police Department records.

C-1 Rev. 8/02

To the extent not provided & to the extent applicable

IV. DEPOSITIONS: (check applicable box)

(a) The depositions of the following parties shall take place on 2/12/14 at 10 a.m. within the Office of the Corporation Counsel located at 198 351 East 161st Street, Bronx, New York, or as otherwise agreed:

Grand Concourse

☐ All parties

☒ Plaintiff(s) EBT only

☒ Defendant(s) to be held on 2/19/14 at 351
Waived by _____ as to _____

(b) Defendant(s) reserve the right to a further deposition of plaintiff(s), as to any new Grand Concourse injuries or damages claimed in any supplemental bill of particulars served by or plaintiff(s) following the plaintiff's deposition. within 2 weeks thereafter

V. PHYSICAL EXAMINATION:

(a) A physical examination of the plaintiff shall be scheduled within 60 days after plaintiff's examination before trial.

(b) A copy of the physician's report shall be furnished to plaintiff(s) within 60 days after the examination.

(c) Defendant(s) reserve the right to a further physical as to any new injuries claimed in any supplemental bill of particulars served by plaintiff(s).

VI. OTHER DISCLOSURE:

(a) All parties shall provide the names and addresses of any witnesses to the occurrence and notice witnesses; accident reports; party statements; photographs taken in the ordinary course of business within 60 days.

(b) The City of New York and/or other defendants represented by Corporation Counsel, if any, shall provide the following information to all parties within 60 days, subject to the date and location specified in the notice of claim (check if applicable).

1. Premises Liability Cases:

- i. Departmental accident/incident report from respective City agency;
- ii. For non-transitory conditions, maintenance and repair records and written complaints regarding the condition complained of for 2 years prior to and including the date of occurrence.
- iii. For transitory conditions, maintenance and written complaints regarding the condition complained of for 2 months prior to and including the date of the occurrence.
- iv. Lease and or sublease for the City-owned building, if applicable.

2. Slip and Fall Cases (Department of Sanitation):

To be produced at EBT of defendant City of New York:

- i. District Operation Log (carting book) for the period of 2 weeks prior to and including the date of the occurrence.
- ii. District Snow Operation Book for the above period of time.
- iii. Snow Removal Operation Report (SR-2) and spreading or plowing operation card for the above time period, if the occurrence took place in the roadway.

3. Trip and Fall Cases (Department of Transportation (DOT))

- i. Applications for permits and permits for 2 years prior to and including the date of occurrence;
- ii. Cut forms and repair orders for 2 years prior to and including the date of occurrence;
- iii. Violations issued for 2 years prior to and including the date of occurrence;
- iv. Contracts and all related contract documents (e.g., progress reports) for 2 years prior to and including the date of occurrence will be made available for inspection at either the Office of the Corporation Counsel located at 198 East 161st Street, Bronx, New York, or the appropriate City agency, upon appointment;
- v. Complaints made for 2 years prior to and including the date of occurrence;
- vi. Copy of the most recent Big Apple Pothole and Sidewalk Protection Corporation map, filed at least 15 days prior to the date of occurrence, if incident occurred on a sidewalk or in a crosswalk.

4. Cases involving allegations of defective traffic signals (DOT):

- i. Maintenance and repair records for 2 months prior to and including date of occurrence;
- ii. Complaints made for 2 months prior to and including date of occurrence;
- iii. The name and address of the contractor responsible for maintenance of the traffic signals on date of the occurrence and for 2 months prior thereto;
- iv. A copy of the contract(s) in effect at the time of occurrence and for 2 months prior thereto will be made available for inspection at either the Office of the Corporation Counsel located at 198 East 161st Street, Bronx, New York, or the appropriate City agency, upon appointment.

5. Cases involving allegations of defective traffic signs (DOT):

- i. Maintenance and repair records for 2 months prior to and including the date of occurrence;
- ii. Complaints for 2 months prior to and including the date of occurrence.

To the extent
not already
provided in
the City's
response to
this Demand
served on
5/10/13

6. Cases involving allegations of police misconduct:

The City will provide the following within 60 days after the receipt from plaintiff, of an authorization and "so-ordered" unsealing order described in III (e) above:

- i. Complaint report;
- ii. Complaint follow-up report(s);
- iii. Arrest report;
- iv. Memo book entries for incident in question;
- v. On-line booking sheet.
- vi. Command log entries ~~for~~ for subject incident

7. Inmate assault cases (Department of Correction (DOC)):

- i. Department of Correction incident report, subject to redaction of privileged information, including any information regarding criminal acts of other inmates and/or personal information regarding DOC employees;
- ii. Injury to inmate report (within 60 days after receipt of an authorization from plaintiff).

8. Motor vehicle accidents involving city-owned vehicles:

- i. Departmental accident report from respective city agency
- ii. Maintenance and repair records for the department vehicle involved for one year prior to and including the date of the occurrence, if a vehicular defect is alleged in either the departmental accident report or the MV-104.

9. Board of Education cases:

- i. Accident report: The defendant shall notify the parents of student(s) named in the accident report as to the release of those students names and/or addresses within 30 days of the date herein. Within 45 days of that notification, the defendant shall release the information to the other parties, absent an objection from the notified persons. Board of Education comprehensive accident report(s) for the occurrence is subject to redaction of privileged information pursuant to the Family Education and Privacy Act, U.S. Code Ann., Title 20, Ch. 31;
- ii. Witnesses: The defendant shall notify the parents of student witnesses as to the release of those students names and/or addresses within 30 days of the date herein. Within 45 days of that notification, the defendant shall release the information to the other parties, absent an objection from the notified persons. Witness statements are subject to redaction of privileged information pursuant to the Family Education and Privacy Act, U.S. Code Ann., Title 20, Ch. 31;
- iii. For non-transitory conditions, maintenance and repair records, written complaints, and to the extent applicable, related contracts for the site of plaintiff's accident, regarding the condition complained of for 2 years prior to and including the date of occurrence;
- iv. For transitory conditions, maintenance and written complaints regarding the condition complained of for 2 months prior to and including the date of the occurrence.

- (c) Any party who wishes to obtain prior notices of claim, pursuant to GML§ 50-g, may do so by contacting the Bureau of Law and Adjustment at (212) 669-3422 to obtain an appointment to search the index maintained at 1 Centre Street, New York, New York.
- (d) Any party who wishes to obtain an MV-104, be advised that the New York City Police Department no longer maintains MV-104s beyond 30 days for accidents occurring after April 15, 1995.
- (e) All searches shall be conducted based upon the date and location as described in the notice of claim.

VII CO-DEFENDANT(S) AND/OR THIRD-PARTY(IES) TO PROVIDE THE FOLLOWING TO ALL PARTIES:

[This section is crossed out with a large X.]

VIII THIRD-PARTY ACTIONS/IMPLEADER:

Shall be completed ~~on or before~~ as per CPLR

IX ADDITIONAL DIRECTIVES:

- ① IT to provide contact information for Michael Clemente, Timothy Clemente, David Rose & Deire Clemente if in IT's possession.
- ② IT to provide color/laser photographs of injuries, if any
- ③ IT to provide color/laser photographs of the scene, if any
- ④ All parties responded to ~~all~~ ^{all} ~~Complained~~ Demands.
- ⑤ IT to provide IT with copies of lab reports, field tests, ~~all~~ property vouchers & search warrant.
- ⑥ City to provide copies of IT's criminal court file & DA file w/in 60 days upon City's receipt of file

if they exist w/in 60 days

This Preliminary Conference Order Shall Supersede Any Demands for Discovery Previously Served upon Parties Represented by the Office of the Corporation Counsel.

Failure to comply with any of these directives may result in the imposition of costs or sanctions or other actions authorized by law.

A copy of this order was received on the date hereof.

Neil Hollander, Esq. by Felix Guerra
Attorney for Plaintiff(s)

Attorney for Plaintiff(s)

Attorney for Plaintiff(s)

Attorney for Plaintiff(s)

City by MAC in Schachner
Attorney for Defendant: City of New York

Attorney for Defendant

Attorney for Defendant

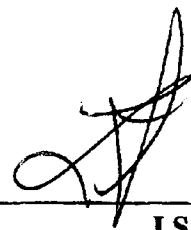
Attorney for Defendant

Attorney for Defendant

Attorney for Defendant

This constitutes the decision and order of the court.

Dated: 8/13/13



J.S.C.

HON. LARRY S. SCHACHNER